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Voter Registration: Recent Developments and Issues for Congress

Updated October 30, 2026

Congressional Research Service
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R46406

CRS REPORT
Prepared for Members and
Committees of Congress

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SUMMARY

R46406

October 30, 2026

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Voter Registration: Recent Developments and Issues for Congress

Voter registration policies are typically determined by state and local governments, subject to certain federal requirements. Historically, much of the federal policy discussion surrounding voter registration has focused on providing access to registration opportunities. Some federal statutes that primarily address preserving voting access for certain constituencies also include provisions that address voter registration, such as the Voting Rights Act of 1965 (VRA), the Voting Accessibility for the Elderly and Handicapped Act of 1984 (VAEHA), and the Uniformed and Overseas Citizens Absentee Voting Act of 1986 (UOCAVA).

The National Voter Registration Act of 1993 (NVRA) expanded registration opportunities by creating a federal mail-based registration form and requiring states to provide voter registration opportunities alongside services provided by departments of motor vehicles (DMVs) and at other agencies. NVRA remains a fundamental component of federal voter registration policy and contains a number of other provisions affecting voter registration administration. Other key elements of NVRA relate to processes used for voter list maintenance or removing voters from the registration list. The Help America Vote Act of 2002 (HAVA), a broader election administration statute, also addresses voter registration. HAVA required states to create a computerized, centralized, statewide voter registration list and introduced revisions to the NVRA mail-based voter registration form, among other provisions.

State officials retain the ability to determine a variety of aspects of their voter registration systems. For example, state registration deadlines for federal elections cannot be more than 30 days before an election under NVRA, but states may set deadlines closer to Election Day or allow same-day voter registration. A number of states have automatic voter registration policies, where data from individuals transacting business with certain agencies are automatically shared with state election officials to facilitate new or updated voter registration records. States have different policies on whether convicted felons can vote while incarcerated or after their sentences are completed, as well as different policies on determining residency or domicile for voting purposes. States also vary in a range of administrative processes related to voter registration, including voter registration list maintenance, voter removal processes, and data-sharing.

Legislation addressing voter registration is routinely introduced in Congress, often proposing to amend existing provisions under NVRA or HAVA related to expanding voter registration opportunities, ensuring accuracy in voter registration records, or providing uniformity across state practices. Since the 2020 election, many states have considered or implemented changes to state voter registration policies. Voter registration system policies are also discussed in the context of election security, particularly following evidence that foreign actors attempted to access or accessed voter registration systems in some states prior to the 2016 election. This report generally discusses bills that were introduced in the 118th Congress and to date in the 119th Congress, with a few examples from the 116th and 117th Congresses. Some of these measures are stand-alone bills that would solely address voter registration, and some of these are broader election administration or election security bills that contain specific provisions related to voter registration.

Many view congressional activity related to voter registration as an extension of the federal government's role in upholding the constitutional right to vote and ensuring the integrity of election processes. As a prerequisite to voting in each state but North Dakota, which does not require voter registration, voter registration policies, broadly, can help prevent ineligible individuals from voting or prevent eligible voters from voting multiple times in an election. Certain voter registration measures, however, may be viewed as barriers that inhibit otherwise eligible individuals from being able to vote. Some may question whether further expanding the federal role in voter registration is necessary, given existing federal and state practices. Imposing uniform standards across states could also present challenges because of the decentralized nature of U.S. election administration and the variety of election practices currently in place under state laws. Other measures addressing election administration or elements of election integrity, unrelated to voter registration, may also be a legislative priority.

Contents

Introduction 1
Current Federal Voter Registration Statutes 2
National Voter Registration Act of 1993 (NVRA) 2
Help America Vote Act of 2002 (HAVA) 5
Components of Voter Registration Systems 6
Voter Registration Policies Across States 8
Registration Deadlines 9
Domicile or Residency Requirements 10
Contributing Agencies Providing Registration or Updates 11
Voter List Accuracy, Maintenance, and Record Sharing 12
Selected Legislative Issues Related to Voter Registration 14
Definitions and Guidelines Relating to Registration Systems 15
Electronic Poll Books (E-Poll Books) 17
Funding for States Related to Voter Registration 18
Online (or Electronic) Voter Registration 20
Verification of Voters' Personal Information 22
Automatic Voter Registration (AVR) 22
Same-Day Voter Registration 24
List Maintenance Efforts 26
Database Management and Access Standards 28
False Information Regarding Registration Status or Eligibility 30
Concluding Observations 31

Figures

Figure 1. Sample Components of a Voter Registration System 7
Figure 2. State Voter Registration Deadlines 9
Figure 3. State Automatic Voter Registration Policies 11

Contacts

Author Information 32

Introduction

Voter registration is a prerequisite for voting in federal elections in each state except North Dakota, which does not require voter registration. States largely determine their own voter registration policies, subject to certain federal statutory requirements that are mainly found in the National Voter Registration Act of 1993 (NVRA) and the Help America Vote Act of 2002 (HAVA). Congressional attention to voter registration traditionally has been related to ensuring registration access through promoting registration opportunities, to promoting accuracy in voter registration records, or to protecting individuals from discriminatory registration practices in federal elections, and these considerations remain in current policy debates.

Many states have considered and implemented a variety of changes to their voter registration practices and other elements of election administration during recent years. In some instances, temporary changes were made ahead of the 2020 election in response to the COVID-19 pandemic. A number of more permanent voter registration policy changes have also been enacted by states in recent years. CRS analysis of data from the National Conference of State Legislatures (NCSL) indicates that a total of 656 bills related to voter registration were introduced across 50 states in 2025, and 67 of those bills were enacted across 34 states. In 2026 to date, 324 bills across 43 states have been introduced related to voter registration, and 51 of those bills have been enacted across 25 states.[1]

Evidence of interference attempts during recent election cycles has also drawn some congressional attention to election security considerations. The Senate Select Committee on Intelligence (SSCI) found that Russian actors scanned voter registration systems in multiple states prior to the 2016 election, as well as evidence of other election interference. In at least seven states, voter registration systems were targeted for access, either directly or through connections between the state's registration database and other governmental or election systems, and in two of those states, voter registration databases were inappropriately accessed.[2] The SSCI found no evidence that any registration data had been altered or deleted in 2016, but its report notes that the data obtained from security breaches may be used at a later date for interference efforts or other purposes, such as identity theft. In November 2021, the U.S. Justice Department indicted two Iranian nationals for attempting to compromise approximately 11 state voter registration or voter information websites ahead of the 2020 election and successfully downloading information for over 100,000 voters in one state.[3]

The first sections of this report provide background information on current federal policies affecting voter registration and an overview of voter registration policy aspects that can vary across states. The later sections of the report provide an overview of selected voter registration

[1] CRS examination of topics related to registration, as available from National Conference of State Legislatures, "State Election Legislation Database," accessed October 26, 2026, https://www.ncsl.org/technology-and-communication/ncsl-50-state-searchable-bill-tracking-databases. In 2026, one bill related to voter registration was also enacted in Puerto Rico. In 2025, three bills related to voter registration were also enacted in Guam.

[2] See Volume I of U.S. Congress, Senate Select Committee on Intelligence, *Russian Active Measures Campaigns and Interference in the 2016 U.S. Election: Volumes I-V Together with Additional Views*, 116th Cong., 1st sess., November 10, 2020, S.Rept. 116-290, https://www.intelligence.senate.gov/publications/report-select-committee-intelligence-united-states-senate-russian-active-measures.

[3] U.S. Department of Justice, U.S. Attorney's Office, Southern District of New York, "U.S. Attorney Announces Charges Against Two Iranian Nationals For Cyber-Enabled Disinformation And Threat Campaign Designed To Interfere With The 2020 U.S. Presidential Election," press release, November 18, 2021, https://www.justice.gov/usao-sdny/pr/us-attorney-announces-charges-against-two-iranian-nationals-cyber-enabled. A link to the full text of the indictment is available at https://www.justice.gov/usao-sdny/press-release/file/1449276/download.

issues before Congress. These sections include references to specific bills introduced during the 118th Congress and in the 119th Congress to date; generally, many of the subjects addressed in these bills have also been of legislative interest in previous Congresses. A number of election security bills introduced in recent Congresses also address elements of voter registration.

Current Federal Voter Registration Statutes

State and local governments are responsible for many aspects of election administration, but several federal statutes affect voter registration processes. Historically, federal laws addressing voting access have also often included voter registration provisions. For example, the Voting Rights Act of 1965 (VRA), as amended, prohibits any voting qualification, prerequisite, standard, practice, or procedure that results in denial or abridgement of the right to vote based on race, color, or membership in a language minority.[4] The Voting Accessibility for the Elderly and Handicapped Act of 1984 (VAEHA) requires states to establish "a reasonable number of accessible permanent registration facilities" and offer registration aids for elderly or handicapped individuals to use in federal elections.[5] The Uniformed and Overseas Citizens Absentee Voting Act of 1986 (UOCAVA) requires states to accept and process any valid voter registration applications received at least 30 days prior to a federal election from military or overseas voters[6] and created an official postcard form states would accept for these individuals containing both a voter registration application and an absentee ballot application.[7] The two main federal statutes affecting voter registration are the National Voter Registration Act of 1993 (NVRA) and the Help America Vote Act of 2002 (HAVA), summarized in the sections below.

National Voter Registration Act of 1993 (NVRA)

The National Voter Registration Act of 1993 (NVRA) is the primary federal statute addressing voter registration.[8] NVRA's stated purposes are to establish procedures to increase the number of eligible citizens registered to vote in federal elections; enable enhanced voter participation in federal elections; protect the integrity of the electoral process; and ensure accurate voter registration records.[9] Additional information on NVRA can be found in CRS Report R45030, *Federal Role in Voter Registration: The National Voter Registration Act of 1993 (NVRA) and Subsequent Developments*.

Among its provisions expanding access to voter registration, NVRA requires states to provide in-person voter registration opportunities at certain locations. The "motor-voter" provisions of NVRA require states to simultaneously provide eligible citizens an opportunity to register to vote

[4] 52 U.S.C. §§10301, 10303; see CRS Report R43626, *The Voting Rights Act of 1965: Background and Overview*.

[5] P.L. 98-435, October 31, 1985, 99 Stat. 563; 52 U.S.C. ch. 201. See 52 U.S.C. §§20103-20104 for voter registration provisions.

[6] UOCAVA applies to members of the uniformed services and U.S. citizens who live abroad. The uniformed services includes members of the Merchant Marine, Army, Navy, Air Force, Marine Corps, Coast Guard, the commissioned corps of the Public Health Service, and the commissioned corps of the National Oceanic and Atmospheric Administration. (UOCAVA predates establishment of the Space Force, which is housed within the Department of the Air Force. For UOCAVA purposes, Space Force was included in the *uniformed service* definition of a 2021 rulemaking; see Department of Defense, "Federal Voting Assistance Program (FVAP)," 86 *Federal Register* 70746-707748, December 13, 2021.)

[7] P.L. 99-410, August 28, 1986, 100 Stat. 924; 52 U.S.C. ch. 203. See CRS Report RS20764, *The Uniformed and Overseas Citizens Absentee Voting Act: Overview and Issues*.

[8] P.L. 103-31, May 20, 1993, 107 Stat. 77; 52 U.S.C. ch. 205.

[9] 52 U.S.C. §20501(b).

(or update their registration information) when they apply for a motor vehicle driver's license or other personal identification document issued by a state department of motor vehicles (DMV).[10] In addition to offering voter registration through DMVs, states under NVRA provide in-person voter registration opportunities at designated, residence-based voter registration sites, in accordance with state law, and at designated federal, state, or nongovernmental offices, including state agencies providing public assistance or services to persons with disabilities.[11]

Other components of NVRA relate to voter registration administration. Each covered state is required to designate a state officer or employee to serve as the chief state election official and coordinate state responsibilities related to NVRA.[12] NVRA also specifies certain requirements for the information presented on and collected by state voter registration forms for federal elections and requires states to accept a federal, mail-based voter registration application authorized by NVRA.[13] It also includes procedural requirements for transmitting completed applications from voter registration agencies to state election officials and notifying applicants about the disposition of their applications.[14]

NVRA establishes criminal penalties for individuals who "knowingly and willfully" attempt to intimidate, threaten, or coerce anyone who is attempting to register to vote, assisting with voter registration, voting, or exercising any right under NVRA, and for individuals who attempt to deprive state residents of a "fair and impartially conducted election process" by procuring or submitting voter registration applications or ballots that are known to be fraudulent according to state law. These acts could be punishable by fines under Title 18 of the *U.S. Code* and/or imprisonment for up to five years.[15]

Some provisions of NVRA also address voter registration list maintenance efforts.[16] NVRA stipulates that once a voter is registered, that individual's name will not be removed from the list or roster of eligible voters unless the voter requests removal; has died; has moved out of the jurisdiction; or, as provided by state law, has received a disqualifying criminal conviction or is

[10] 52 U.S.C. §§20502-20504.

[11] 52 U.S.C. §20506(a).

[12] 52 U.S.C. §20509. States exempt from NVRA are Idaho, Minnesota, New Hampshire, North Dakota, Wisconsin, and Wyoming; see U.S. Department of Justice, Civil Rights Division, "The National Voter Registration Act of 1993 (NVRA)," https://www.justice.gov/crt/national-voter-registration-act-1993-nvra.

[13] 52 U.S.C. §20508. Voter registration applications under NVRA "may require only such identifying information ... as is necessary" to verify eligibility and to administer voter registration and other parts of the election process. These applications must include statements listing federal voting eligibility requirements (including citizenship) and require a signature from the applicant, attesting that he or she meets the eligibility criteria. Voter registration forms may not include "any requirement for notarization or other formal authentication." The forms also include a statement about penalties for submitting a false voter registration application, and a statement asserting that information about declining to register or the office where a citizen registered would be kept confidential. Executive Order 14248 contains provisions related to proof-of-citizenship requirements for federal voter registration forms; as of the time of this writing, there are pending legal challenges to the executive order. See EO 14248, "Preserving and Protecting the Integrity of American Elections," 90 *Federal Register* 14005, March 25, 2025, https://www.federalregister.gov/documents/2025/03/28/2025-05523/preserving-and-protecting-the-integrity-of-american-elections; and CRS Legal Sidebar LSB11368, *Executive Order on Elections: Legal Background and Court Challenges*, by Jimmy Balser et al.

[14] 52 U.S.C. §§20506(d), 20507(a).

[15] 52 U.S.C. §20511.

[16] For further discussion on NVRA's list maintenance provisions, see section on "Voter List Accuracy, Maintenance, and Record Sharing" below, and CRS Report R46943, *Voter Registration Records and List Maintenance for Federal Elections*.

found to be mentally incapacitated.[17] Voters may not be removed from the registration rolls solely due to nonvoting,[18] or for moving within the same electoral jurisdiction.[19] States may also remove a voter from the registration rolls if the registrant has notified the election office that he or she has moved.[20]

States may "conduct a general program that makes a reasonable effort" to remove voters from the list due to death or a change of residence, which must be completed at least 90 days prior to a federal election.[21] The processes states use for maintaining their registration lists for federal elections must be undertaken in a "uniform, nondiscriminatory" fashion and comply with the Voting Rights Act of 1965.[22] Registrars can send a notice to voters they believe should be removed, containing a forwardable mail response card with prepaid postage, and if a voter does not respond to the notice, that individual may be removed from the state's registration list after he or she fails to vote or appear to vote in two consecutive general elections for federal office.[23] NVRA notes that states may conduct such a program using information from the U.S. Postal Service (USPS) National Change of Address (NCOA) database to identify those who may have moved.

Under NVRA, states are required to keep records pertaining to voter registration list maintenance and to make these records publicly available.[24] NVRA also directed the Federal Election Commission (FEC) to publish a biennial election report assessing the impact of the act on federal election administration and offering recommendations for improvements to federal and state procedures, forms, and other matters affected by NVRA. These FEC responsibilities were transferred to the U.S. Election Assistance Commission (EAC) following the enactment of the Help America Vote Act (HAVA) in 2002.[25]

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[17] 52 U.S.C. §20507(3-4). For an overview of state laws regarding voting rights and criminal convictions, see U.S. Election Assistance Commission, *The Election Administration and Voting Survey 2024 Comprehensive Report*, report to the 118th Congress, June 30, 2025, pp. 85-87, https://www.eac.gov/sites/default/files/2025-07/2024_EAVS_Report_508.pdf (hereinafter "EAC, *2024 EAVS Comprehensive Report*"); see also links provided under "Additional Resources" at National Conference of State Legislatures, "Felon Voting Rights," March 13, 2026, https://www.ncsl.org/elections-and-campaigns/felon-voting-rights. For more information on state policies regarding voter rights and mental health conditions, see Courtney Schiffler, "Voting Rights for People with Diminished Mental Capacity," *Mitchell Hamline Law Review*, vol. 48, no. 2 (March 2022), https://mhlawreview.org/wp-content/uploads/2022/03/Voting-Rights-for-People-with-Diminished-Mental-Capacity.pdf; Jennifer A. Okwerekwu et al., "Voting by People with Mental Illness," *Journal of the American Academy of Psychiatry and the Law*, vol. 46, no. 4 (December 1, 2018), pp. 513-520, http://jaapl.org/content/early/2018/10/31/JAAPL.003780-18; and Matt Visilogambros, "Thousands Lose Right to Vote Under 'Incompetence' Laws," *Stateline* blog, The Pew Charitable Trusts, March 21, 2018, https://www.pewtrusts.org/en/research-and-analysis/blogs/stateline/2018/03/21/thousands-lose-right-to-vote-under-incompetence-laws.

[18] 52 U.S.C. §20507(b)(2).

[19] 52 U.S.C. §20507(e-f). If a voter changed addresses within a jurisdiction and was removed from the voter roll, NVRA contains provisions to allow these individuals to vote or update their registration information on Election Day.

[20] 52 U.S.C. §20507(d).

[21] 52 U.S.C. §20507(a)(4).

[22] 52 U.S.C. §20507(b)(1).

[23] 52 U.S.C. §20507(d). For an analysis of the related U.S. Supreme Court case, *Husted v. A. Philip Randolph Institute*, see CRS Legal Sidebar LSB10175, *Supreme Court Rules Ohio Voter Roll Law Comports with National Voter Registration Act*.

[24] 52 U.S.C. §20507(i).

[25] 52 U.S.C. §20508. Since 2014, the EAC has published the NVRA report along with the UOCAVA report and the Election Day survey as its biennial Election Administration and Voting Survey (EAVS) Comprehensive Report. For additional information and to view recent EAVS reports, see U.S. Election Assistance Commission, *Election Administration and Voting Survey (EAVS) Comprehensive Report*, https://www.eac.gov/research-and-data/studies-and-reports/.

Help America Vote Act of 2002 (HAVA)[26]

One key component of HAVA related to voter registration required states to create "a single, uniform, official, centralized, interactive computerized statewide voter registration list," maintained at the state level by the chief state election official and containing the name, registration information, and a unique identifier for each voter.[27] This electronic list is often referred to as a state's *voter registration database* (VRDB). States also must follow certain steps to verify the identities of new voter registration applicants.[28] States may not accept or process a voter registration application for federal elections unless the applicant provides a current and valid driver's license number, the last four digits of his or her Social Security number, or (if the applicant has neither) the state shall assign an alternate, unique identifying number to that individual for voter registration purposes.[29] New voters who submit a voter registration application by mail, and have not previously voted in a federal election in a state, must provide a current and valid photo identification or present "a current utility bill, bank statement, government check, paycheck, or other government document that shows the name and address of the voter," when they vote for the first time.[30]

HAVA also introduced four specific additions to the federal mail-based voter registration form created by NVRA: (1) a question asking whether the registrant was a U.S. citizen; (2) a question asking whether the registrant would be 18 years of age or older by the next election; (3) a statement that if the registrant had answered "no" to either of the preceding questions, that he or she was to stop filling out the form and not register; and (4) a statement alerting a first-time registrant applying via mail to submit copies of appropriate documentation with his or her application or else he or she may be required to provide such documentation when voting for the first time.[31]

Certain HAVA provisions also address voter registration list maintenance. HAVA directs state DMV officials to enter into agreements with the Social Security Administration and with the chief state election official to verify and match certain applicant information.[32] HAVA also requires states to coordinate their computerized voter registration lists with state agency records on felony status and state agency records on death.[33] Generally, HAVA directs states to follow NVRA's provisions for removing ineligible voters from the VRDB.[34] Registered individuals who have not

[26] 52 U.S.C. §§20921 et seq. This report only briefly addresses parts of HAVA that affected NVRA or voter registration in federal elections. HAVA has many additional components related to elections administration; for more information, see CRS Report R46949, *The Help America Vote Act of 2002 (HAVA): Overview and Ongoing Role in Election Administration Policy*.

[27] 52 U.S.C. §21083(a)(1)(A).

[28] For additional discussion, see National Conference of State Legislatures, "Voter Registration List Maintenance," October 21, 2025, https://www.ncsl.org/elections-and-campaigns/voter-registration-list-maintenance/.

[29] 52 U.S.C. §21083(a)(5)(A)(i-ii).

[30] 52 U.S.C. §21083(b). Individuals who registered to vote by mail and are unable to provide documentation when voting in person for the first time may cast a provisional ballot. See 52 U.S.C. §21083(b)(2)(B)(i).

[31] Individuals who registered to vote by mail and are unable to provide documentation when registering or when voting by mail for the first time may cast a provisional ballot. See 52 U.S.C. §21083(b)(2)(B)(ii).

[32] 52 U.S.C. §21083(a)(5)(B).

[33] 52 U.S.C. §21083(a)(2)(A)(ii).

[34] 52 U.S.C. §21083(a)(2)(A). States exempt from NVRA "shall remove the names of ineligible voters from the computerized list in accordance with State law; see 52 U.S.C. §21083(a)(2)(A)(iii).

responded to a mailed notice and who have not voted in two consecutive general federal elections, as provided under NVRA, "shall be removed from the official list of eligible voters."[35]

HAVA provided funding to help states carry out its provisions[36] and created the EAC, an independent, bipartisan agency responsible for administering payment and grant programs related to federal elections; testing and certifying voting systems; studying election issues; and issuing guidelines and other guidance related to voting systems and implementation of HAVA's requirements, in consultation with election officials and other stakeholders.[37]

Components of Voter Registration Systems

In each state and territory (with the exception of North Dakota, which does not require voter registration), voter registration can be thought of as a system, organized around the centralized, statewide VRDB required by HAVA, with connections to the voter registration agencies required by the NVRA, and other components and practices that vary depending on state law and practice. State election officials must generally ensure that VRDBs maintain (1) accurate records; (2) privacy for individual data; (3) accessibility for relevant actors; and (4) reliability during an election. The VRDB and the ways in which it connects to other offices or entities involved in election administration (including vendors who provide software or equipment) can present security vulnerabilities or oversight challenges, some related to cybersecurity or technology, and others related to human error or actions.[38] **Figure 1** provides an illustration of a sample voter registration system and the ways in which a VRDB may be related to other information sources or election administration functions.

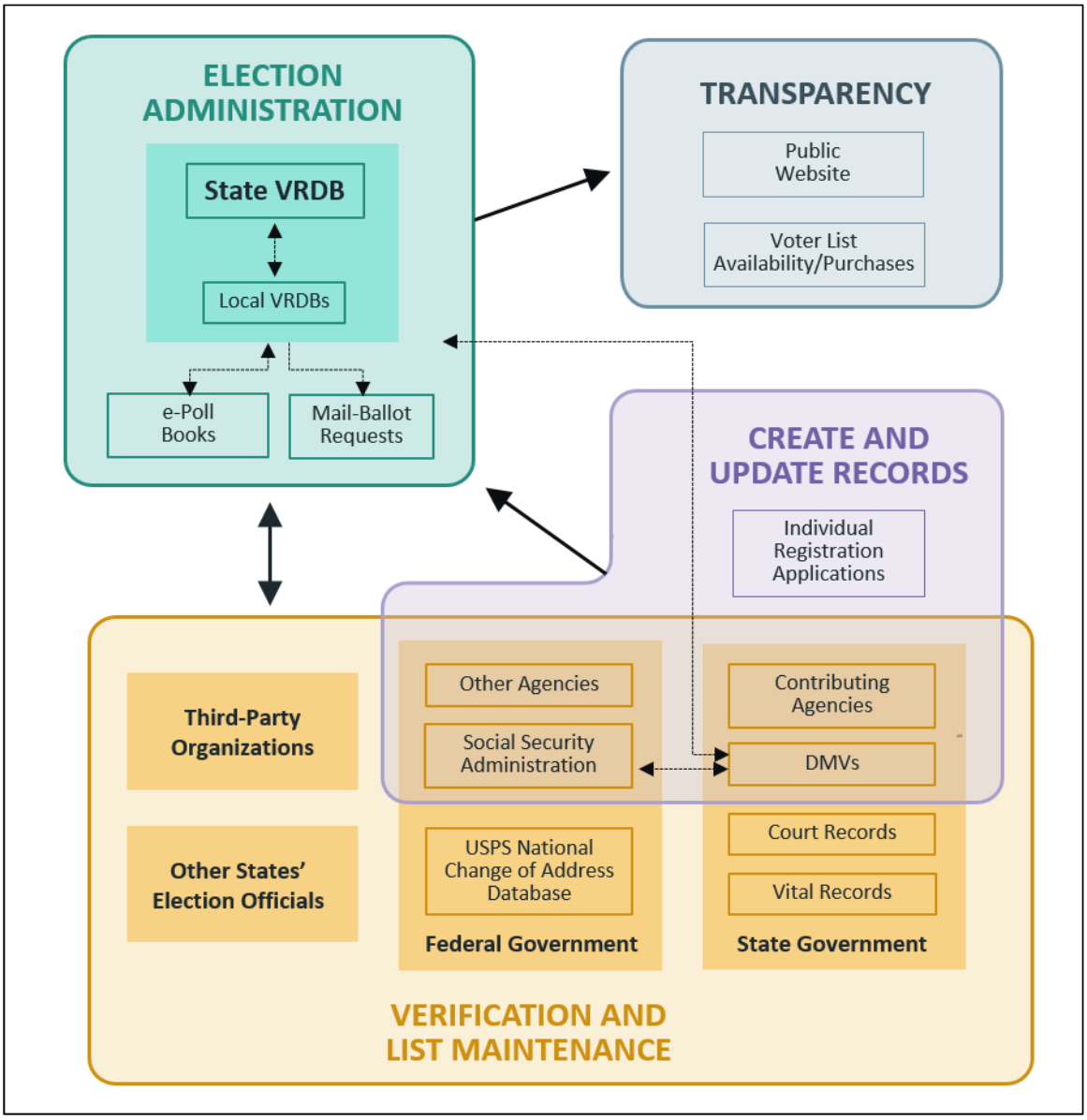
[35] 52 U.S.C. §21083(a)(4)(A).

[36] 52 U.S.C. §20901. See also "Grants Programs" discussion in CRS Report R46949, *The Help America Vote Act of 2002 (HAVA): Overview and Ongoing Role in Election Administration Policy*.

[37] 52 U.S.C. §§20921 et seq. See CRS Report R45770, *The U.S. Election Assistance Commission (EAC): Overview and Selected Issues for Congress*. The EAC also issued voluntary guidance for states on implementing HAVA's statewide voter registration requirement; see U.S. Election Assistance Commission, *Voluntary Guidance on Implementation of Statewide Voter Registration Lists*, July 28, 2005, https://www.eac.gov/sites/default/files/event_document/files/voluntary%20guidance%20on%20implementation%20of%20statewide%20voter%20registration%20list%20public%20meeting%20july%2028%202005.pdf.

[38] For more information on election security and database management considerations related to voter registration systems, see U.S. Department of Homeland Security, Cybersecurity and Infrastructure Security Agency (CISA), "Recognizing and Addressing Threats to Statewide Voter Registration Databases," September 24, 2026, https://www.cisa.gov/resources-tools/resources/recognizing-and-addressing-threats-statewide-voter-registration-databases; Carter B.F. Casey et al., *Recommended Security Controls for Voter Registration Systems*, MITRE Corporation, December 2019, https://www.mitre.org/publications/technical-papers/recommended-security-controls-for-voter-registration-systems; David Becker et al., *Voter Registration Database Security*, Center for Election Innovation & Research, September 2018, https://electioninnovation.org/2018-vrdb-security/; Center for Internet Security, *Security Best Practices for Non-Voting Election Technology*, October 2019, https://www.cisecurity.org/wp-content/uploads/2019/11/Security-Best-Practices-Non-Voting-Election-Tech-Singles-19-Nov.pdf; CRS In Focus IF11285, *Election Security: Voter Registration System Policy Issues*; and Defending Digital Democracy Project, Belfer Center for Science and International Affairs, Harvard Kennedy School, *The State and Local Election Cybersecurity Playbook*, February 2018, https://www.belfercenter.org/publication/state-and-local-election-cybersecurity-playbook.

Figure 1. Sample Components of a Voter Registration System



Source: CRS examination of federal and various state laws related to voter registration practices.

Notes: Many of these relationships will vary depending upon state laws and practices. The Help America Vote Act (HAVA) (52 U.S.C. §§20921 et seq.), however, requires each state to have a centralized voter registration database (VRDB) and requires state departments of motor vehicles (DMVs) to enter into information-sharing agreements with state election officials and the Social Security Administration.

Typically, a VRDB receives inputs from various sources to create or update voter records. When processing voter registration applications, some state election officials receive information directly from individual applicants, and some state election officials receive applicants' information from local registrars. Some voter registration applications may be submitted electronically, whereas others are mailed in or submitted in person as paper copies that need to be digitized for entry into the VRDB.

To share records, VRDBs may also be linked to databases for other government agencies, VRDBs from other states, or organizations; these information-sharing agreements generally vary across

states and are determined by state law. State election officials can receive individual records from other databases as a method of registering new voters, updating existing voter records, verifying information submitted from applicants, or removing ineligible voters from the VRDB. Registration status changes can occur for a variety of reasons, often dependent upon state law, including changes related to an individual's name, residence, mental incapacitation, criminal status, or death. HAVA specifies that state election officials must establish information-sharing agreements to receive database records from state DMVs. State election officials may also utilize database records from other voter registration agencies designated under NVRA or state law; state agencies with records on felon status, mental incapacity, or death; USPS change of address records; or other sources. Some state election officials also may compare voter registration information with other states' records, either through partnerships with other state election officials or organizations like the Electronic Registration Information Center (ERIC)[39] for list maintenance or verification efforts.

In addition to sharing information for verification or list maintenance purposes, VRDB records are accessed for election administration and transparency purposes. Many states or localities, for example, provide websites where an individual voter can check his or her registration status and related information. The records from a VRDB are used to create *poll books* (or lists of registered voters) that are used at polling places to confirm the eligibility of those who turn out to vote on Election Day. Traditionally, poll books have been printed volumes, prepared ahead of Election Day, though digital *electronic poll books* (or *e-poll books*), accessible on a computer or tablet, are becoming more commonly used.[40] E-poll books may operate with voter records downloaded from a VRDB, or (particularly in states with same-day voter registration) may maintain a real-time connection to the VRDB on Election Day. States also have varying policies about how voter data files may be acquired by members of the public, researchers, political committees, or candidates.[41]

Voter Registration Policies Across States

Most elements of voter registration are determined by state and local laws or practices. This section provides an overview of certain features of voter registration processes that vary across a number of states. States and localities may have voter registration policies that are specific to state and local elections, but some state or local policies can also affect voter registration for federal elections. The information provided below is not intended to be a comprehensive catalog of state policies, but instead highlights some of the dimensions along which voter registration practices vary and may affect voter registration for federal elections. These topics are also often addressed in congressional policy proposals related to voter registration.

[39] For more information on ERIC, see its website at https://ericstates.org/.

[40] National Conference of State Legislatures, "Electronic Poll Books," July 16, 2024, https://www.ncsl.org/elections-and-campaigns/electronic-poll-books; and CRS Insight IN12280, *Federal Guidelines, Testing, and Certification for Electronic Poll Books (E-Poll Books)*.

[41] For one compilation of state policies on obtaining voter lists, see U.S. Election Assistance Commission, *Availability of State Voter File and Confidential Information*, October 29, 2020, https://www.eac.gov/sites/default/files/voters/Available_Voter_File_Information.pdf.

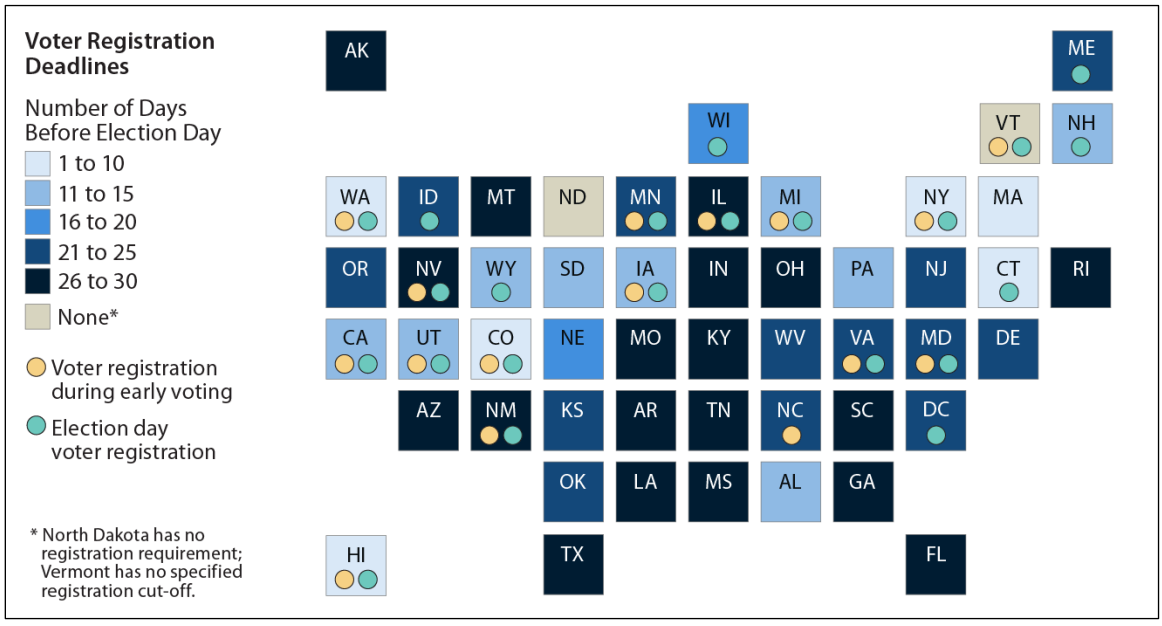
Registration Deadlines

States often establish deadlines by which they must receive voter registration applications before an election.[42] Voter registration deadlines generally provide time for state election officials to process and verify submitted information. State application deadlines for federal elections cannot be more than 30 days before the election under NVRA.[43] Some states have adopted a 30-day voter registration deadline, others have deadlines closer to Election Day, and some states allow voters to register to vote on Election Day or during early voting periods through policies commonly referred to as *same-day voter registration*. **Figure 2** illustrates state voter registration deadlines and provides information on which states allow voting on Election Day and/or during periods of early voting.

Application deadlines may vary depending on the method of registration; in some states, applications submitted via postal mail, for example, must be postmarked or received by state election officials sooner than applications submitted online, if the state provides an online registration option. States may also allow localities to establish their own registration deadlines, and states can require different lengths of time to process applications ahead of primary elections, special elections, or general elections.

Figure 2. State Voter Registration Deadlines

Figure is interactive in the HTML version of this report.



Source: CRS compilation, based on information from National Conference of State Legislatures, "Same Day Voter Registration," March 27, 2026, https://www.ncsl.org/research/elections-and-campaigns/same-day-registration.aspx; and National Conference of State Legislatures, "Voter Registration Deadlines," May 20, 2026, https://www.ncsl.org/research/elections-and-campaigns/voter-registration-deadlines.aspx.

Notes: Practices within states may vary by locality, and different voter registration deadlines may apply based on method of registration or type of election. States with Election Day registration or voter registration during early voting typically also maintain a voter registration deadline for in-person, mailed, and/or online registration

[42] For an overview of state voter registration deadlines, see National Conference of State Legislatures, "Voter Registration Deadlines," October 13, 2025, https://www.ncsl.org/elections-and-campaigns/voter-registration-deadlines.

[43] 52 U.S.C. §20507(a).

applications submitted outside of a voting site. This figure generally displays the earliest voter registration deadline provided by a state. Additional details about voter registration deadlines can be viewed in the HTML version of this figure, or can be accessed from the NCSL page cited above.

Domicile or Residency Requirements

Throughout the United States, voter registration is geographically based, but states and localities can have different definitions for terms like *domicile* and *residence* which are often used for determining voting eligibility.[44] The way in which domicile or residence is defined for election purposes may or may not be similar to how a jurisdiction might define those terms in other contexts, such as for tax purposes. Statutory definitions may differ across jurisdictions, but typically, domicile has traditionally referred to the permanent place where a person lives, whereas residence traditionally has referred to a current location or more temporary place where a person is living at present.[45] State or local election laws and requirements may, however, use the terms differently or in ways that might conflate their conventional meanings.[46]

These different definitions, and the ways in which jurisdictions ask voters to demonstrate proof of residency or domicile,[47] may impact the ability of certain people to register to vote, including those who have recently moved to a jurisdiction, people with multiple residences, college students, or people who are homeless or in transitional housing (such as a rehabilitation center, nursing facility, or halfway house). A 1970 amendment to the Voting Rights Act prohibited jurisdictions from requiring that voters have lived within their boundaries for a certain length of time for presidential elections,[48] but some jurisdictions may have durational residency requirements for other elections.[49] The Federal Voting Assistance Program (FVAP) provides a definition of "voting residence" for U.S. servicemembers and citizens residing outside the United States.[50]

[44] National Conference of State Legislatures, "Voter Registration is All About Residency (and Domicile)," *The Canvass*, issue 69 (May 2016), pp. 1-3, https://www.ncsl.org/Documents/Elections/The_Canvass_May_2016.pdf.

[45] See, for example, definitions in *Black's Law Dictionary* (2nd ed.) for "What is Domicile?" at https://thelawdictionary.org/domicile/; and "What is Residence?" at https://thelawdictionary.org/residence/.

[46] For example, Hawaii requires that individuals must be state residents to register to vote, but notes that "[t]he residence stated in your application cannot simply be because of your presence in the State but instead it must be that the residence was acquired with the intent to make Hawaii your legal residence with all the accompanying obligations therein." See State of Hawaii, Office of Elections, "Determining Residency," https://elections.hawaii.gov/resources/election-laws/determining-residency/. As another example, New Hampshire's general definition of residence means "a person who is domiciled or has a place of abode or both in this state and in any city, town, or other political subdivision of this state, and who has, through all of his or her actions, demonstrated a current intent to designate that place of abode as his or her principal place of physical presence to the exclusion of all others." See New Hampshire Statutes, Title I, ch. 21, §6, http://www.gencourt.state.nh.us/rsa/html/I/21/21-6.htm.

[47] For examples of proof of residency requirements, see Iowa Secretary of State, "Updating Your Voter Registration," https://sos.iowa.gov/elections/voterinformation/updatereg.html; Maryland Office of the Attorney General, "Voting FAQ," http://www.marylandattorneygeneral.gov/Pages/votingFAQ.aspx#3; and Wisconsin Elections Commission, "Voter Registration and Proof of Residence," accessed August 13, 2024, https://elections.wi.gov/Register.

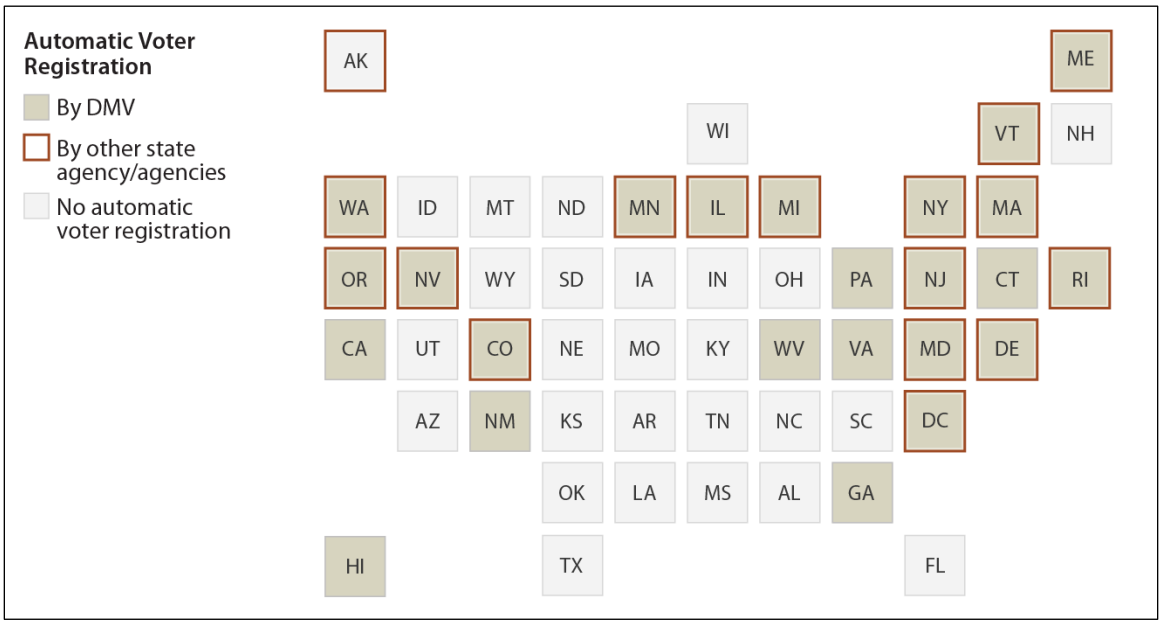
[48] 52 U.S.C. §10502; P.L. 91-285, §6, June 22, 1970, 84 Stat. 316.

[49] For further discussion, see "How long must voters live in a state to qualify as residents?" in National Conference of State Legislatures, "Voter Registration is All About Residency (and Domicile)," *The Canvass*, issue 69 (May 2016), p. 2, https://www.ncsl.org/Documents/Elections/The_Canvass_May_2016.pdf.

[50] Federal Voting Assistance Program, *Voting Residency Guidelines*, https://www.fvap.gov/info/laws/voting-residency-guidelines.

Figure 3. State Automatic Voter Registration Policies

Figure is interactive in the HTML version of this report.



Source: CRS compilation, based on information from National Conference of State Legislatures, "Automatic Voter Registration," August 19, 2026, https://www.ncsl.org/research/elections-and-campaigns/automatic-voter-registration.aspx.

Contributing Agencies Providing Registration or Updates

Under NVRA, states are required to provide federal voter registration opportunities simultaneously with applications for services at state DMVs, public assistance agencies, and offices that provide services to individuals with disabilities and to present the opportunity to register to vote at a number of state and local government offices deemed "voter registration agencies" designated by each state.[51] These are opportunities to opt in to register to vote, either through selecting an option on a form for other services or by completing a separate voter registration form at a participating agency.

Automatic voter registration (AVR) policies operate as an opt-out system, where an individual is automatically registered to vote when submitting personal information for certain agency services unless they choose not to register to vote. Twenty-four states and the District of Columbia have enacted automatic voter registration, as shown in **Figure 3**. In many of these states, AVR occurs at DMVs, but some states have designated other agencies to participate in their AVR programs.[52] Under these policies, an option for declining to register to vote can be presented on the form itself, or can be provided to the individual at a later time through a mailed notice from election officials.

[51] For more information, see "Other Voter Registration Agencies," in CRS Report R45030, *Federal Role in Voter Registration: The National Voter Registration Act of 1993 (NVRA) and Subsequent Developments*; and CRS Insight IN11782, *Voter Registration Agencies Under the National Voter Registration Act of 1993 (NVRA)*.

[52] National Conference of State Legislatures, "Automatic Voter Registration," July 21, 2025, https://www.ncsl.org/elections-and-campaigns/automatic-voter-registration.

Voter List Accuracy, Maintenance, and Record Sharing

States use a variety of methods to identify individuals who are ineligible to register to vote. Some of this activity occurs when election officials screen voter registration applications, and, depending on state law, may prompt either follow-up correspondence with an applicant to correct or provide additional information or may result in the rejection of an application. Election officials also examine existing voter registration records and may take action to remove an ineligible voter from the state voter registration database if appropriate. HAVA and NVRA provide some parameters for states to follow regarding applicant verification, voter registration list maintenance, and removal of ineligible voters from state registration lists for federal elections. Within these parameters, however, states maintain the ability to establish many of their own voter registration verification processes, as well as their own list maintenance and access procedures.

Voter registration applicants under HAVA must provide a current and valid driver's license number, the last four digits of their Social Security number, or (if the applicant has neither) the state shall assign an alternate, unique identifying number assigned to the individual for voter registration purposes.[53] States check the numbers provided by applicants against their DMV's records and the Social Security Administration's records,[54] but HAVA lets each state determine its own matching standards and whether "the information provided by an individual is sufficient" to meet these requirements.[55]

NVRA specifies certain reasons why a voter can be removed from a state's list of eligible federal voters,[56] and prohibits the removal of voters from a state's list solely for nonvoting[57] or for moving within the same electoral jurisdiction.[58] NVRA does not prescribe a particular program for state voter registration list maintenance, but it does provide some guidelines for what states can and cannot do when removing voters from their lists. State methods for maintaining their registration lists for federal elections must be undertaken in a "uniform, nondiscriminatory" manner in compliance with the Voting Rights Act of 1965.[59] States may engage in a "general program that makes a reasonable effort" to remove voters who have moved or died, which must be completed 90 days prior to a federal election.[60] HAVA generally directs states to follow NVRA's provisions related to removing ineligible voters from the computerized VRDB, and says that registered individuals who have not responded to a mailed notice and who have not voted in two consecutive general federal elections, as provided under NVRA, "shall be removed from the official list of eligible voters."[61] NVRA notes that states can use the USPS NCOA database as one way to identify voters who may have moved,[62] but does not prohibit states from using records

[53] 52 U.S.C. §21083(a)(5)(A)(i-ii).

[54] 52 U.S.C. §21083(a)(5)(B).

[55] 52 U.S.C. §21083(a)(5)(A)(iii). Executive Order 14248 contains provisions related to the role of the Commissioner of Social Security in assisting states with verification; as of the time of this writing, there are pending legal challenges to the executive order. See EO 14248, "Preserving and Protecting the Integrity of American Elections," 90 *Federal Register* 14005, March 25, 2025, https://www.federalregister.gov/documents/2025/03/28/2025-05523/preserving-and-protecting-the-integrity-of-american-elections; and CRS Legal Sidebar LSB11368, *Executive Order on Elections: Legal Background and Court Challenges*, by Jimmy Balser et al.

[56] 52 U.S.C. §20507(a)(3-4).

[57] 52 U.S.C. §20507(b)(2).

[58] 52 U.S.C. §20507(e-f). If a voter changed addresses within a jurisdiction and was removed from the voter roll, NVRA contains provisions to allow these individuals to vote or update their registration information on Election Day.

[59] 52 U.S.C. §20507(b)(1).

[60] 52 U.S.C. §20507(c)(2)(a).

[61] 52 U.S.C. §21083(a)(2)(A); 52 U.S.C. §21083(a)(4)(A).

[62] 52 U.S.C. §20507(c)(1).

from other agencies or organizations to identify voters whose records should be removed.[63] States may enter into agreements with other states, or participate in interstate information-sharing systems, to compare voter registration records with records of other states.[64] The Electronic Registration Information Center (ERIC) is one such interstate system that is currently used by 27 states and the District of Columbia.[65]

Some data-sharing practices may raise concerns about information security[66] and appropriate use of voters' data, particularly if states choose to use matching systems as the basis of their voter removal processes.[67] In addition to sharing voter information with other state election officials, states or localities generally allow entities or individuals meeting certain requirements to request access to, or purchase, a list of their registered voters.[68]

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[63] Executive Order 14399 directs the Secretary of Homeland Security and Commissioner of the Social Security Administration to provide state election officials with a "State Citizenship List" based on federal records; as of the time of this writing, there are pending legal challenges to the executive order. See EO 14399, "Ensuring Citizenship Verification and Integrity in Federal Elections, 91 *Federal Register* 17125, March 31, 2026, https://www.federalregister.gov/documents/2026/04/03/2026-06601/ensuring-citizenship-verification-and-integrity-in-federal-elections; and CRS Legal Sidebar LSB11368, *Executive Order on Elections: Legal Background and Court Challenges*, by Jimmy Balser et al.

[64] Being registered as a voter in multiple states is not in and of itself illegal under federal law but can create costs for state election officials, for example, with regard to voter list maintenance, estimating voter turnout and allocating the appropriate level of resources for elections, and/or communications with eligible voters. See Pew Center on the States, *Inaccurate, Costly, and Inefficient*, issue brief, February 2012, http://www.pewtrusts.org/~/media/legacy/uploadedfiles/pcs_assets/2012/pewupgradingvoterregistrationpdf.pdf. Use of multiple registrations to vote in multiple jurisdictions during the same federal election would be illegal (52 U.S.C. §10307(e)). Some state statutes also address double voting in other elections; see National Conference of State Legislatures, "Double Voting," April 29, 2024, https://www.ncsl.org/elections-and-campaigns/double-voting.

[65] ERIC is a nonprofit organization "assisting states to improve the accuracy of America's voter rolls." For more information, see the ERIC website at https://ericstates.org/, accessed October 28, 2026. In recent years, several states have also chosen to stop participating in ERIC. For more information on these developments, see Acacia Coronado and Christina A. Cassidy, "Texas Is Largest State to Leave Bipartisan National Effort to Prevent Voter Fraud," Associated Press, July 20, 2023, https://apnews.com/article/texas-voting-registration-fraud-eric-324d63f035ec22785839bc1b632410b0; and Matt Vasilogambros, "Why Are GOP-Led States Leaving Voter Registration Group ERIC?," *Governing*, May 23, 2023, https://www.governing.com/politics/why-are-gop-led-states-leaving-voter-registration-group-eric. See also Dean Mirshahi and Patrick Larsen, "Spanberger Orders Virginia's Return to ERIC Voter Data Partnership," *Virginia Public Media*, March 26, 2026, https://www.vpm.org/news/2026-03-26/eric-election-integrity-security-abigail-spanberger-glenn-youngkin/.

[66] For example, see Peggy Lowe, "Kansas Voter Tracking System Championed By Former SOS Kris Kobach is 'Dead'," *KCUR 89.3*, December 10, 2019, https://www.kcur.org/post/kansas-voter-tracking-system-championed-former-sos-kris-kobach-dead/; Thomas Brewster, "191 Million US Voter Registration Records Leaked In Mystery Database," *Forbes*, December 28, 2015, https://www.forbes.com/sites/thomasbrewster/2015/12/28/us-voter-database-leak/; and Fredreka Schouten and Curt Devine, "Voting Rights Activists Sound Alarms over Private Tool That Could Lead to Canceling Voter Registrations" *CNN.com*, September 11, 2023, https://www.cnn.com/2023/09/11/politics/voting-rights-new-tool-canceling-registrations/index.html.

[67] For example, see Matt Vasilogambros, "Why Are GOP-Led States Leaving Voter Registration Group ERIC?," *Governing*, May 23, 2023, https://www.governing.com/politics/why-are-gop-led-states-leaving-voter-registration-group-eric. Some cross-referencing systems states have used to identify and remove voters from their registration lists have been criticized for the methodologies they use to create matches. Matches created using voters' names and birthdays, for example, may falsely identify multiple, unique individuals as a single voter registered in different states; see Michael P. McDonald and Justin Levitt, "Seeing Double Voting: An Extension of the Birthday Problem," *Election Law Journal*, vol. 7, no. 2 (Spring 2008), pp. 111-122; and Sharad Goel et al., "One Person, One Vote: Estimating the Prevalence of Double Voting in U.S. Presidential Elections," *American Political Science Review*, vol. 114, no. 2 (May 2020) https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3872769.

[68] Information on state laws regarding voter list availability and uses is available from the National Conference of State Legislatures, "Access To and Use Of Voter Registration Lists," June 10, 2026, https://www.ncsl.org/elections-and-campaigns/access-to-and-use-of-voter-registration-lists; and U.S. Election Assistance Commission, *Availability of State* (continued...)

Selected Legislative Issues Related to Voter Registration

Congress has, at times, passed legislation requiring certain uniform practices for federal elections. Generally, federal laws addressing voter registration for federal elections have required states to provide certain opportunities for individuals to register to vote or update their registration information; addressed certain administrative elements related to state voter registration processes for federal elections, such as voter verification methods or efforts to ensure that registration lists are accurate; and provided protections for individuals against discrimination in voter registration practices. More information on these laws can be found in the "Current Federal Voter Registration Statutes" section of this report.

Legislative proposals related to the federal role in voter registration can vary widely, as discussed in the sections below. Some policymakers support expanding the existing federal role in election administration and voter registration, whereas other policymakers assert that such decisions are better left to state or local election officials. Views of particular policy proposals relating to voter registration policy may also depend on the specific elements of the proposals.

Multiple bills addressing voter registration have been introduced in recent Congresses. This report generally discusses bills that were introduced in the 118th Congress and to date in the 119th Congress.

Some of these measures are stand-alone bills that solely address voter registration, and some are broader election administration or election security bills that contain specific provisions related to voter registration. Often, these bills propose amending existing provisions found under NVRA or HAVA. In recent Congresses, most of these voter registration bills have not advanced beyond committee referral. Of the bills referenced in the report from the 119th Congress to date, additional chamber actions were taken on the following bills, as noted below:

- H.R. 8800, National Defense Authorization Act for Fiscal Year 2027 (which contained provisions of the SAVE America Act in Division E), passed the House on July 22, 2026 (216-212);
- S. 1383, Safeguard American Voter Eligibility (SAVE America) Act, passed the House on February 11, 2026 (218-213);[69] and
- H.R. 22, Safeguard American Voter Eligibility (SAVE) Act, passed the House on April 10, 2025 (220-208).

During the 118th and 117th Congresses, chamber actions were also taken on a number of measures related to voter registration.[70]

Voter File and Confidential Information, October 29, 2020, https://www.eac.gov/sites/default/files/voters/Available_Voter_File_Information.pdf. See also Meta S. Brown, "Voter Data: What's Public, What's Private," *Forbes*, December 28, 2015, https://www.forbes.com/sites/metabrown/2015/12/28/voter-data-whats-public-whats-private/; and Alex Howard, "Publishing Voter Registration Data Must Balance Privacy with Transparency," Sunlight Foundation, June 16, 2016, https://sunlightfoundation.com/2016/06/16/publishing-voter-registration-data-must-balance-privacy-with-transparency/.

[69] For further information, see CRS In Focus IF12902, *Safeguard American Voter Eligibility Act (SAVE America Act) and Federal Voter Registration Policy and Law*.

[70] In the 118th Congress, H.R. 8281, Safeguard American Voter Eligibility (SAVE) Act, passed the House on July 10, 2024; and S. 2226, National Defense Authorization Act for Fiscal Year 2024, passed the Senate on July 27, 2023. Examples from the 117th Congress include H.R. 1, For the People Act (passed the House on March 3, 2021); H.R. (continued...)

The sections below categorize some of the common types of policy proposals related to voter registration that have been introduced during recent Congresses to illustrate some issues that have been of interest to legislators. Given the variety and quantity of measures related to election administration introduced in recent Congresses, this is not a comprehensive discussion of all available voter registration policy options.

Definitions and Guidelines Relating to Registration Systems

States vary in the types of equipment and software they use to administer elections, which can make it challenging to establish a singular definition of election administration infrastructure. Congress and federal agencies have established certain definitions to help provide federal support for election administration. Definitions of election administration architecture may be narrowly construed or designed to apply broadly across differing state systems. While some definitions may focus on equipment or software directly related to casting and tallying votes, other definitions may be more inclusive of other election components, like VRDBs or connected systems. Generally, a distinction can be drawn between certain components of an election system that are directly related to casting or counting ballots, and other components used in relation to election administration. The former can be classified as *voting systems* (e.g., voting machines), and the latter may be thought of as *nonvoting election systems* (e.g., voter registration databases or electronic poll [e-poll] books).

HAVA designates certain equipment and systems used in election administration related to casting and counting ballots as a "voting system."[71] HAVA also directs the EAC to create "voluntary voting system guidelines" (VVSG)[72] that states may choose to follow, and the EAC provides laboratory testing and certification of "voting system hardware and software."[73] The HAVA definition of "voting system" does not include voter registration systems, nor do the VVSG guidelines apply to voter registration systems.[74] The HAVA definition of "voting system" represents a narrower scope than the Department of Homeland Security (DHS)'s definition of

5314, Protecting Our Democracy Act (passed the House on December 9, 2021); H.R. 5746, Freedom to Vote: John R. Lewis Act (House agreed to the text as an amendment to a Senate amendment to an unrelated bill; in the Senate, cloture was not invoked on the question of agreeing to the House amendment on January 19, 2022); S. 2093, For the People Act (cloture not invoked on motion to proceed on September 15, 2021); and S. 2747, Freedom to Vote Act (cloture not invoked on motion to proceed on October 20, 2021).

[71] From 52 U.S.C. §21081(b): "In this section, the term 'voting system' means means—(1) the total combination of mechanical, electromechanical, or electronic equipment (including the software, firmware, and documentation required to program, control, and support the equipment) that is used—(A) to define ballots; (B) to cast and count votes; (C) to report or display election results; and (D) to maintain and produce any audit trail information; and (2) the practices and associated documentation used—(A) to identify system components and versions of such components; (B) to test the system during its development and maintenance; (C) to maintain records of system errors and defects; (D) to determine specific system changes to be made to a system after the initial qualification of the system; and (E) to make available any materials to the voter (such as notices, instructions, forms, or paper ballots)."

[72] 52 U.S.C. §20961. See also U.S. Election Assistance Commission, "Voluntary Voting System Guidelines," https://www.eac.gov/voting-equipment/voluntary-voting-system-guidelines; and CRS Report R47592, *Federal Standards and Guidelines for Voting Systems: Overview and Potential Considerations for Congress*, by Karen L. Shanton.

[73] 52 U.S.C. §20971.

[74] See U.S. Election Assistance Commission, "Voluntary Voting System Guidelines," https://www.eac.gov/voting-equipment/voluntary-voting-system-guidelines. The EAC included a definition of "election system" that includes voter registration systems and electronic poll books (e-poll books), along with other election technologies, but this is not the same as a "voting system." For further discussion, see CRS Insight IN12343, *Election Systems: Recent Action by the Election Assistance Commission*.

"election infrastructure" as critical infrastructure. The announcement of the DHS designation in 2017 specified the following:

> we mean storage facilities, polling places, and centralized vote tabulations locations used to support the election process, and information and communications technology to include voter registration databases, voting machines, and other systems to manage the election process and report and display results on behalf of state and local governments.[75]

Some legislative proposals in recent Congresses have presented ways to define relevant election administration architecture, or have proposed modifying existing definitions, in ways that might specify components of voter registration systems. For example, several bills introduced in the 118th Congress proposed a definition of "election infrastructure" that would have included voter registration databases.[76] One bill from the 119th Congress would establish certain protections related to federal government use of state "election equipment and records" defined to include "any voter registration roll, voter file, or poll book, whether in electronic or paper form."[77] Some legislation introduced during the 119th and other recent Congresses would codify a broader "election system" definition to include voter registration systems and e-poll books.[78] Another proposal from the 117th Congress would have codified a definition of "critical infrastructure" that included voter registration databases.[79] Other initiatives would define and create standards for nonvoting election systems, which would include voter registration systems. In 2022, the EAC began an Election Supporting Technology Evaluation Program (ESTEP) to consider guidelines for nonvoting election systems, as well as testing and certification of those technologies.[80] Some legislative proposals from recent Congresses would have directed the EAC to adopt voluntary guidelines for "nonvoting election technology," defined to include electronic poll books and online voter registration systems, among other technologies.[81] Another proposal from the 118th

[75] U.S. Department of Homeland Security, "Statement by Secretary Jeh Johnson on the Designation of Election Infrastructure as a Critical Infrastructure Subsector," press release, January 6, 2017, https://www.dhs.gov/news/2017/01/06/statement-secretary-johnson-designation-election-infrastructure-critical.

[76] Examples from the 118th Congress include S. 1/H.R. 11/S. 2344 (Freedom to Vote Act), S. 2226 (National Defense Authorization Act for Fiscal Year 2024), H.R. 7447/S. 1500 (Strengthening Election Cybersecurity to Uphold Respect for Elections through Independent Testing [SECURE IT] Act), and S. 4443 (Intelligence Authorization Act for Fiscal Year 2025). For examples in the 117th Congress, see H.R. 1 /S. 1/S. 2093 (For the People Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 2747 (Freedom to Vote Act).

[77] See H.R. 9349 (Voting Systems Protection Act).

[78] For example, in the 119th Congress, see H.R. 8118 (Election Infrastructure Integrity Act), which would include voter registration websites or databases and electronic poll books, as well as other information systems used in federal election administration as part of an "election system" subject to certain vendor transparency requirements. From the 117th Congress, H.R. 6574 (Protect our Elections Act) contains a definition of "election system" to include, among other listed components, "a voter registration website or database, an electronic pollbook ... or any other information system (as defined in Section 3502 of title 44, United States Code) that the Secretary of Homeland Security, in consultation with the [Election Assistance] Commission, identifies as central to the management, support, or administration of a Federal election." Similar bills were also introduced in the 116th Congress, including H.R. 4777/S. 825 (Protect our Elections Act), S. 823 (Election Systems Integrity Act [ESIA]), and H.R. 3529 (Achieving Lasting Electoral Reforms on Transparency and Security [ALERTS] Act).

[79] See S. 2139 (International Cybercrime Prevention Act) from the 117th Congress.

[80] See U.S. Election Assistance Commission, June 12, 2024, "Election Supporting Technology Evaluation Program (ESTEP)," https://www.eac.gov/estep-program; CRS Insight IN12280, *Federal Guidelines, Testing, and Certification for Electronic Poll Books (E-Poll Books)*; and U.S. Election Assistance Commission, "U.S. Election Assistance Commission and the Center for Internet Security Partner on Non-Voting Election Technology Verification Pilot Program," press release, June 17, 2020, https://www.eac.gov/news/2020/06/17/us-election-assistance-commission-and-center-internet-security-partner-non-voting.

[81] Examples from the 118th Congress include H.R. 4457 (Protect American Voters Act), H.R. 4494 (Ensuring Faith in Our Elections Act), and H.R. 4563 (ACE Act). Similar provisions were included in H.R. 8528 (ACE Act) from the (continued...)

Congress would have required audits for nonvoting election technologies, including online voter registration systems.[82]

Electronic Poll Books (E-Poll Books)

Whereas the VRDB itself may be viewed as separate from the voting-related components of election equipment, electronic poll books (or *e-poll books*) are used at polling places to check in eligible voters, using records from the VRDB.[83] On Election Day, or during periods of early voting, election officials at polling places use e-poll books to confirm that individuals are currently registered voters and are at the correct location for their precinct or election district. In jurisdictions that use more centralized vote centers, e-poll books help election officials verify, in real time, that a voter has not already voted at another vote center location. Historically, paper poll books with lists of voter records have been printed by election officials and distributed for use on Election Day, but the availability of centralized state VRDBs introduced the possibility for jurisdictions to utilize electronic versions. In 2024, 39.9% of election jurisdictions, across 41 states, reported using e-poll books.[84]

E-poll books can potentially provide up-to-date voter information, simplify the task of creating poll books for election administrators, and provide poll workers with immediate access to voter records. They may also be used to register voters in states that have same-day voter registration or update voter records. The technology used to provide this electronic voter information may present security vulnerabilities and may raise some voter privacy concerns, particularly if e-poll books are networked to one another or when information is uploaded to or downloaded from the VRDB.[85]

State requirements and practices for using e-poll books vary.[86] Among the states that reported using e-poll books in the EAC's *Election Administration and Voting Survey 2022 Comprehensive Report*, 41.5% of the states using e-poll books reported that e-poll book testing and certification is required by statute, and 17.1% of states reported that testing and certification is required by formal administrative rule or guidance.[87] Technological malfunctions on Election Day related to e-poll book software or device hardware could result in voting delays or misidentification of voters, particularly in jurisdictions that exclusively rely on e-poll books.[88] Purchasing and

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117th Congress, and in H.R. 5707 (Protect American Voters Act) and H.R. 7905 (Emergency Assistance for Safe Elections [EASE] Act) from the 116th Congress.

[82] See H.R. 4555 (Federal Election Audit Act).

[83] See National Conference of State Legislatures, "Electronic Poll Books," September 9, 2026, https://www.ncsl.org/elections-and-campaigns/electronic-poll-books.

[84] EAC, *2024 EAVS Comprehensive Report*, pp. 29-30.

[85] Miles Parks, "Technology Has Made Voting Lines Move Faster But Also Made Elections Less Secure," *NPR*, May 30, 2019, https://www.npr.org/2019/05/30/727529802/technology-has-made-voting-lines-move-faster-but-also-made-elections-less-secure; Stefan Popoveniuc and John Kelsey, "On Privacy Threats of Electronic Poll Books," Proceedings of the Workshop on Privacy in the Electronic Society 2010, Chicago, IL, October 4, 2010, https://www.nist.gov/publications/privacy-threats-electronic-poll-books.

[86] EAC, *The Election Administration and Voting Survey 2022 Comprehensive Report*, report to the 118th Congress, June 29, 2023, pp. 26-27, https://www.eac.gov/sites/default/files/2023-06/2022_EAVS_Report_508c.pdf (hereinafter EAC, *2022 EAVS Comprehensive Report*); and National Conference of State Legislatures, "Electronic Poll Books," September 9, 2026, http://www.ncsl.org/research/elections-and-campaigns/electronic-pollbooks.aspx.

[87] EAC, *2022 EAVS Comprehensive Report*, p. 85.

[88] For example, see Pam Fessler, "Russian Cyberattack Targeted Elections Vendor Tied To Voting Day Disruptions," *NPR*, August 10, 2017, https://www.npr.org/2017/08/10/542634370/russian-cyberattack-targeted-elections-vendor-tied-to-voting-day-disruptions; and Jonathan Lai, "Philly elections officials touted new electronic poll books. Now the (continued...)

maintaining the technology required to operate e-poll books securely may also be a concern for election administrators.[89]

As discussed in the preceding section, some legislative proposals in recent Congresses would include e-poll books as part of a statutorily defined "election infrastructure" or "election system," or as part of HAVA "voting systems."[90] Some proposals in the 118th Congress would have directed the EAC to include voluntary standards and provide certification for e-poll books in the VVSG.[91] Several bills introduced in recent Congresses would have directed DHS to issue mandatory cybersecurity requirements for e-poll books and for other election components.[92] Other measures in recent Congresses have proposed disclosure and/or domestic ownership requirements for e-poll book manufacturers.[93] Some bills would require voting sites using electronic poll books to also have paper poll books available. [94]

In the 119th Congress, some bills would also provide funding to states related to e-poll books. One bill, for example, would authorize EAC-administered election security grants to states for purposes that include "[s]ecuring and protecting electronic poll books."[95] Another measure would authorize EAC-administered grants to states for "procuring or maintaining electronic poll books," among other purposes.[96]

Funding for States Related to Voter Registration

With HAVA and subsequent legislation, Congress has, at times, provided funding to help states and territories with their election administration and security efforts.[97] Some legislative provisions stipulate that federal election funding must be used for specific purposes, whereas other provisions allow more flexibility for states or localities to spend election funds on areas they identify as needs. Certain uses of federal funds may also be prohibited.[98] Legislative

city says they don't work right," *Philadelphia Inquirer*, September 18, 2019, https://www.inquirer.com/politics/philadelphia/philly-epollbook-electronic-systems-should-not-be-used-city-says-20190917.html.

[89] For example, see Dominique Maria Bonessi, "Tech That Caused Problems During Maryland's Special Election Will Be Used Again," *WAMU 88.5*, February 29, 2020, https://wamu.org/story/20/02/29/tech-that-caused-problems-during-marylands-special-election-will-be-used-again/.

[90] Examples from the 119th Congress include H.R. 8118 (Election Infrastructure Integrity Act) and H.R. 9349 (Voting Systems Protection Act).

[91] Examples from the 118th Congress include S. 1/H.R. 11 /S. 2344 (Freedom to Vote Act). See also CRS Insight IN12280, *Federal Guidelines, Testing, and Certification for Electronic Poll Books (E-Poll Books)*.

[92] Examples from the 116th Congress include H.R. 2754/S. 1472 (Protecting American Votes and Elections Act of 2019) and S. 2238 (Securing America's Federal Elections [SAFE] Act).

[93] Examples from the 117th Congress include H.R. 6574 (Protect our Elections Act), and examples from the 116th Congress include H.R. 4777/S. 825 (Protect our Elections Act) and S. 823 (Election Systems Integrity Act [ESIA]).

[94] In the 119th Congress, see H.R. 4911 (People Over Long Lines [POLL] Act). Examples from the 118th Congress include H.R. 5291/S. 3517 (People Over Long Lines [POLL] Act); similar measures were introduced in the 117th Congress as H.R. 9688 /S. 2117 and in the 116th Congress as S. 4668.

[95] See H.R. 7418 (Securing Tech and Election Administration Defenses For All States and Territories [STEADFAST] Act).

[96] See H.R. 4881 (Supplying Wait-time Information to Facilitate Timely Voting with Operational and Technology Enhancements [SWIFT VOTE] Act).

[97] For more information, see CRS In Focus IF11286, *Election Security: Federal Funding for Securing Election Systems*; and CRS In Focus IF11961, *Elections Grant Programs: Authorizations and Appropriations*.

[98] For example, 42 U.S.C. §9851(b)(2) prohibits state or local agencies in the federal Head Start program from using appropriated funds "to conduct voter registration activities." The statute also notes: "Nothing in this subchapter prohibits the availability of Head Start facilities during hours of operation for the use of any nonpartisan organization to (continued...)

language has at times designated voter registration websites, VRDBs, e-poll books, or other registration-related elements as uses for federal funding. Certain state election practices may also be a condition or a criterion for consideration for federal funding. Typically, the EAC administers payments to states and monitors state compliance with funding requirements.

A number of bills introduced in recent Congresses would have provided states with broad funding for election administration or security, often through EAC grant programs established under HAVA.[99] In the 119th Congress, the Consolidated Appropriations Act, 2026 (H.R. 7148, P.L. 119-75) provided $45 million under HAVA grant programs for election security improvements. Other funding to states through EAC-administered grants has been provided in recent Congresses. The Coronavirus Aid, Relief, and Economic Security (CARES) Act from the 116th Congress (H.R. 748; P.L. 116-136), for example, provided $400 million for "Election Security Grants" for states "to prevent, prepare for, and respond to coronavirus, domestically or internationally, for the 2020 Federal election cycle." The Consolidated Appropriations Acts for FY2020 (116th Congress, H.R. 1158; P.L. 116-93) and for FY2018 (115th Congress, H.R. 1625; P.L. 115-141) provided $425 million and $380 million, respectively, for payments under HAVA that authorize funding for general improvements to the administration of federal elections.[100] In initial funding request letters submitted to the EAC, several states and territories indicated they would use some of the FY2020 funding for voter registration system improvements.[101] In its subsequent *2020 Grant Expenditure Report*, the EAC noted that 53% of states had "replaced or enhanced their voter registration systems to ensure security of the data and protect against cyberattacks, and in its 2021 *Grant Expenditure Report*, the EAC noted 30% of states reported such activities."[102]

Other legislative proposals more specifically address voter registration as a use for proposed federal funding. For example, some bills would specify that the HAVA requirements payments provided for "voting system security improvements" could be used for "enhancing the security of voter registration databases."[103] Some legislation also would provide funding for states along with requirements to implement certain voter registration practices, like automatic voter registration, same-day voter registration, or other practices.[104] Other bills direct the EAC to distribute grant

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increase the number of eligible citizens who register to vote in elections for Federal office." Another provision in, 52 U.S.C. §30142 states: "No part of any funds appropriated to carry out the Economic Opportunity Act of 1964 [42 U.S.C. 2701 et seq.] shall be used [for]... any voter registration activity."

[99] For further discussion, see CRS Report R46646, *Election Administration: Federal Grant Funding for States and Localities*; CRS In Focus IF11961, *Elections Grant Programs: Authorizations and Appropriations*, and CRS Insight IN11508, *Elections Grant Funding for States: Recent Appropriations and Legislative Proposals*.

[100] The appropriations language in the FY2020 and FY2018 acts directs the EAC to "make payments to States for activities to improve the administration of elections for Federal office, including to enhance election technology and make election security improvements, as authorized by sections 101, 103, and 104 of such Act"; for more information, see "Federal Funding for Securing Election Systems" section in CRS Report R46146, *Campaign and Election Security Policy: Overview and Recent Developments for Congress*.

[101] See, for example, letters submitted by Alaska, Arizona, District of Columbia, Guam, and Maryland, available at Election Assistance Commission, "2020 HAVA Funds," https://www.eac.gov/payments-and-grants/2020-hava-funds.

[102] U.S. Election Assistance Commission, *2020 Grant Expenditure Report: October 1, 2019-September 30, 2020*, July 2021, https://www.eac.gov/sites/default/files/paymentgrants/expenditures/2020_State_Grant_Expenditure_Report_FINAL.pdf, p. 10; and U.S. Election Assistance Commission, *2021 Grant Expenditure Report: October 1, 2020-September 30, 2021*, July 2022, https://www.eac.gov/sites/default/files/paymentgrants/expenditures/EAC_2021_Grant_Expenditure_Report_FINAL.pdf, p. 11.

[103] Examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021).

[104] Some of these bills also present a national requirement for states to adopt certain voter registration practices; examples from the 119th Congress include H.R. 160 (Restoring Faith in Elections Act), H.R. 4914 (Unhoused Voter Opportunity Through Elections [Unhoused VOTE] Act), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), H.R. 8441 (Military Voters Overseas Technical Enhancement [Military VOTE] Act), H.R. 10202 (High School Voter (continued...)

funding to states to improve voting system security[105] and may include certain voter registration practices, such as maintaining offline backups of voter registration lists, facilitating electronic information transfers between election officials and state agencies, logging requests submitted to the VRDB, or establishing a policy of security safeguards and use limitations for voters' personal information, as criteria for the EAC to consider when distributing certain funds.[106]

Alternatively, federal legislation could place limits on voter registration funding for states, either by restricting the source of funding or restricting its use by states. For example, some legislative proposals would limit HAVA funding for certain state practices,[107] or contain provisions that would prohibit use of certain federal funds for voter registration purposes.[108]

Online (or Electronic) Voter Registration

Many government forms and applications now can be completed and submitted via the internet. In 42 states and the District of Columbia, online (or electronic) voter registration is available.[109] Some bills introduced in the 119th Congress propose requiring nationwide availability of online

Empowerment Act of 2026), H.R. 10700 (Accessible Voting Act of 2026), S. 5481 (Youth Voting Rights Act), and S. 2822 (Register America to Vote Act of 2025). Examples from the 118th Congress include H.R. 11/S. 1/S. 2344 (Freedom to Vote Act), H.R. 156 (Restoring Faith in Elections Act), H.R. 9727/S. 5151 (Voter Empowerment Act of 2024), S. 2841 (Register America to Vote Act of 2023), and S. 2971 (Unhoused Voter Opportunity Through Elections [Unhoused VOTE] Act); examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 4335 (Register America to Vote Act of 2022), and S. 2747 (Freedom to Vote Act).

[105] For example, language in several bills would establish grants under HAVA for "voting system security improvements," which could be used for "enhancing the cybersecurity of voter registration [databases or systems]." Examples from the 118th Congress include H.R. 11/S. 1/S. 2344 (Freedom to Vote Act); examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 2747 (Freedom to Vote Act).

[106] Examples from the 119th Congress include H.R. 160 (Restoring Faith in Elections Act), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026) and S. 2822 (Register America to Vote Act of 2025). Examples from the 118th Congress include H.R. 11/S. 1/S. 2344 (Freedom to Vote Act), H.R. 156 (Restoring Faith in Elections Act), H.R. 9727/S. 5151 (Voter Empowerment Act of 2024), and S. 2841 (Register America to Vote Act of 2023); examples from the 117th Congress include H.R. 1/S. 1 (For the People Act of 2021).

[107] From the 118th Congress, for example, provisions in H.R. 4563 (American Confidence in Elections [ACE] Act), H.R. 4460 (Noncitizens: Outlawed from Voting in Our Trusted Elections [NO VOTE for Noncitizens] Act of 2023), and H.R. 4491 (Ensuring Faith in Our Elections Act), would have reduced HAVA payments by 30% to jurisdictions that allow individuals who are not U.S. citizens to vote in state or local elections. A similar measure was introduced in the 117th Congress as H.R. 7959 (Noncitizens: Outlawed from Voting in Our Trusted Elections [NO VOTE for Noncitizens] Act of 2022).

[108] For example, some bills contain language, similar to existing federal law, that would continue to prohibit certain grant funding from being used for voter registration activities, including H.R. 8723/S. 4550 (Head Start Improvement Act) from the 118th Congress. Some legislation was also introduced in the 118th Congress that would have prohibited federal agencies from entering into agreements with nongovernmental organizations for voter registration or mobilization, including H.R. 4563 (American Confidence in Elections [ACE] Act), H.R. 3072/H.R. 4500/S. 1398 (Promoting Free and Fair Elections Act), H.R. 6493 (Promoting Free and Fair Elections Act of 2023), and H.R. 4494 (Ensuring Faith in Our Elections Act).

[109] The states that currently have online voter registration are Alabama, Alaska, Arizona, California, Colorado, Connecticut, Delaware, Florida, Georgia, Hawaii, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maryland, Massachusetts, Michigan, Minnesota, Missouri, Nebraska, Nevada, New Jersey, New Mexico, New York, North Carolina, Ohio, Oregon, Pennsylvania, Rhode Island, South Carolina, Tennessee, Utah, Vermont, Virginia, Washington, West Virginia, and Wisconsin. Two additional states, Maine and Oklahoma, have enacted online voter registration legislation and are in the process of implementation. See National Conference of State Legislatures, "Online Voter Registration," January 23, 2025, https://www.ncsl.org/elections-and-campaigns/online-voter-registration.

voter registration for federal elections.[110] Other bills introduced in the 119th Congress address providing or accepting certain voter registration applications through electronic means but would not require nationwide online voter registration.[111]

Proponents view online voter registration as an option that could increase registration rates, particularly among younger voters, and could serve as an extension of existing accessibility accommodations for individuals with disabilities. Because internet-based forms can include required fields, proponents also note that electronic voter registration could reduce the number of errors on submitted voter registration applications. States that do not currently have electronic voter registration may face some upfront costs to design and implement an online system, but proponents believe that, once implemented, online voter registration may be a relatively inexpensive way for state election officials to maintain up-to-date and accurate voter lists.[112]

Others have concerns about the ability to confirm applicants' identities and the overall security of online voter registration systems. Without accurate checks on the voter registration process, some believe that it could be easier for individuals to vote illegally.[113] The SSCI's report on election interference in 2016 also noted instances where state online voter registration websites were targeted, and, among its other recommendations, noted that state election officials "should pay particular attention to the presence of high severity vulnerabilities in relevant web applications."[114]

Legislation has also been introduced in recent Congresses that would direct the EAC to establish voluntary guidelines for state online voter registration systems, as well as provide grant funding that states could use to enhance such election technology.[115]

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[110] Examples from the 119th Congress include H.R. 8078/S. 4203 (Voter Empowerment Act of 2026). Examples from the 118th Congress include H.R. 11/S. 1/S. 2344 (Freedom to Vote Act), and H.R. 9727/S. 5151 (Voter Empowerment Act of 2024). Similar bills introduced in the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 2747 (Freedom to Vote Act).

[111] For example, H.R. 8441 (Military VOTE Act) would require states to accept UOCAVA voter registration applications submitted "by electronic means (defined as submission by electronic mail or submission through an online portal)" and authorize grant funding for such implementation. H.R. 9873/S. 5122 (Inclusive Democracy Act of 2026) would require election officials accept an "electronic" (fax or email) voter registration form for incarcerated individuals. Another bill, H.R. 8130 (Filer Voter Act), would treat certain tax preparers as "voter registration agencies" under NVRA and, if they offer tax preparation services online, require them to provide a hyperlink to an online voter registration application source.

[112] Michelle Kanter Cohen, *Online Voter Registration*, Project Vote, Issues in Election Administration policy paper, May 2013, http://www.projectvote.org/wp-content/uploads/Policy-Paper-Online-Voter-Registration.pdf; and Iseul Choi et al., *Cost-Benefit Analysis of Implementing an Online Voter Registration System in Wisconsin*, Wisconsin Government Accountability Board, December 20, 2013, https://lafollette.wisc.edu/images/publications/cba/2013-voter.pdf.

[113] Latanya Sweeney, Ji Su Yoo, and Jinyan Zang, "Voter Identity Theft: Submitting Changes to Voter Registrations Online to Disrupt Elections," *Journal of Technology Science*, September 6, 2017, https://techscience.org/a/2017090601.

[114] U.S. Congress, Senate Select Committee on Intelligence, *Russian Active Measures Campaigns and Interference in the 2016 U.S. Election, Volume 1: Russian Efforts Against Election Infrastructure with Additional Views*, 116th Cong., 1st sess., July 25, 2019, https://www.intelligence.senate.gov/sites/default/files/documents/Report_Volume1.pdf, pp. 21-23, 57.

[115] Examples from the 118th Congress include H.R. 4457 (Protect American Voters Act), H.R. 4494 (Ensuring Faith in Our Elections Act), and H.R. 4563 (American Confidence in Elections [ACE] Act). H.R. 8528 (American Confidence in Elections [ACE] Act) from the 117th Congress contained similar provisions. For information on existing EAC guidelines for voting technology, see CRS Report R47592, *Federal Standards and Guidelines for Voting Systems: Overview and Potential Considerations for Congress*.

Verification of Voters' Personal Information

State election officials work to ensure that the individual records stored in a VRDB are accurate and that the eligibility or ineligibility of a voter to participate in federal elections is determined correctly. Verification efforts can be done at the individual applicant level, by specifying that certain information must be provided when a person submits a new voter registration application or an update to an existing record, and some congressional proposals contain applicant requirements that could aid in verification.[116] Verification efforts may also be undertaken at the state or local level by the election officials who receive and process information from applicants by cross-checking the information submitted on voter registration applications with other records to confirm the prospective voter's identity and address. Some of these types of efforts are discussed below in the sections on automatic voter registration, same-day voter registration, and list maintenance efforts.

Automatic Voter Registration (AVR)

Under *automatic voter registration* (or *AVR*), individuals are typically registered to vote (if qualified) when they submit their personal information for services at another government agency, such as a state DMV. Currently under NVRA, federal voter registration opportunities are presented with state driver's license applications, and are made available at a number of other state and local government offices. When presented with these registration opportunities, an individual must opt in and indicate that he or she wishes to register to vote. AVR, instead, is an opt-out system, where an individual's personal information is automatically sent to state election officials for voter registration purposes when submitting a driver's license application or other eligible agency form unless the person indicates otherwise. The option to decline to register to vote may be presented on the form itself, or provided to the individual at a later time through a notice mailed by election officials. The District of Columbia and 24 states have adopted

[116] For example, in the 119th Congress, H.R. 22/S. 128 (Safeguard American Voter Eligibility [SAVE] Act and H.R. 7296/S. 3752 (Safeguard American Voter Eligibility [SAVE America] Act) would prohibit states from registering any individual to vote in federal elections unless the individual provides documentary proof of U.S. citizenship; for further discussion see CRS In Focus IF12902, *Safeguard American Voter Eligibility Act (SAVE America Act) and Federal Voter Registration Policy and Law*. The House passed a version of the SAVE America Act (218-213) as S. 1383 on February 11, 2026, and its provisions were also introduced in H.R. 8206 (Homeland Security and Further Additional Continuing Appropriations Act, 2026) and in H.R. 8800 (National Defense Authorization Act for Fiscal Year 2027). The House also passed H.R. 8800. The House also passed H.R. 22 (SAVE Act) (220-208) on April 10, 2025. Similar legislation in the 118th Congress included H.R. 487 (Ensuring American Voters Act of 2023), H.R. 627 (Verification of the Electorate Act [VOTE] Act), and H.R. 8281/S. 4292 (Safeguard American Voter Eligibility [SAVE] Act); in the 118th Congress, the SAVE Act provisions were also included in H.R. 9494 (Continuing Appropriations and Other Matters Act, 2025) and H.R. 10034 (Border Security and Immigration Reform Act). Similar legislation in the 117th Congress included H.R. 322/S. 459 (Save Democracy Act), and H.R. 873 (Ensuring American Voters Act of 2021). In the 118th Congress, H.R. 4488 (American Confidence in Elections: District of Columbia Voter Identification Act) would have established similar requirements for District of Columbia elections. One proposal from the 119th Congress would withhold a percentage of federal surface transportation funds from states that do not require proof of citizenship for voter registration; see H.R. 9897 (Trump-Reagan Election Enforcement Act). Another provision found in several recent bills would amend NVRA to require that driver's license applicants in a new state indicate whether the state would serve as their residence for voter registration purposes, including H.R. 160 (Restoring Faith in Elections Act), H.R. 7300 (Make Elections Great Again Act), and H.R. 8078/S. 4203 (Voter Empowerment Act of 2026) in the 119th Congress; and H.R. 156 (Restoring Faith in Elections Act), H.R. 2566 (Voter Registration Efficiency Act), and H.R. 9727/S. 5151 (Voter Empowerment Act of 2024) in the 118th Congress. Similar bills from the 117th Congress included H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), and H.R. 2358/S. 954 (Voter Empowerment Act of 2021).

automatic voter registration; most of these states provide AVR at DMVs, but several states have also designated additional state agencies to administer AVR.[117]

Proponents of automatic voter registration often argue that it could increase the number of registered voters, particularly among demographic groups that are currently registered at lower rates. Relaying information directly from other agency records can provide more up-to-date voter registration data and decrease opportunities for human error and overall registration costs.[118]

Others have raised concerns that the government should not require citizens to register to vote and that the opt-out options, particularly if sent by mail, may not sufficiently ensure that an individual who does not want to register, or is not qualified to register, can effectively decline registration. AVR may also present opportunities for erroneous data to be submitted to state election officials and require more work for those who must sort out eligible and ineligible voter registration applicants.[119]

Proposals in recent Congresses have addressed automatic voter registration in a variety of ways, with some providing incentives to states for adopting automatic voter registration and others requiring states to implement automatic voter registration.[120] Some proposals would essentially modify existing requirements for state DMVs under NVRA, changing voter registration from an opt-in choice to an opt-out choice.[121] Some bills would introduce AVR at certain agencies,

[117] See **Figure 3**. Additional information is available from National Conference of State Legislatures, "Automatic Voter Registration," August 19, 2026, https://www.ncsl.org/elections-and-campaigns/automatic-voter-registration; and Brennan Center for Justice, "History of AVR & Implementation Dates," October 6, 2023, https://www.brennancenter.org/our-work/research-reports/history-avr-implementation-dates.

[118] National Conference of State Legislatures, "Automatic Voter Registration," August 19, 2026, https://www.ncsl.org/elections-and-campaigns/automatic-voter-registration; Robert Griffin and Paul Gronke, "More States are Registering Voters Automatically. Here's How that Affects Voting," *Washington Post* (*Monkey Cage* blog), June 16, 2017, https://www.washingtonpost.com/news/monkey-cage/wp/2017/06/16/more-states-are-registering-voters-automatically-heres-how-that-affects-voting/.

[119] National Conference of State Legislatures, "Automatic Voter Registration," July 21, 2025, https://www.ncsl.org/elections-and-campaigns/automatic-voter-registration; Matt Vasilogambros, "Glitches in California Embolden Automatic Voter Registration Foes," *Stateline*, October 17, 2019, https://www.pewtrusts.org/en/research-and-analysis/blogs/stateline/2019/10/17/glitches-in-california-embolden-automatic-voter-registration-foes; and Sophia Tarreen, "Voter Registration Error Risks Deportation for Immigrants," Associated Press, February 10, 2020, https://apnews.com/4e959694ac7ea7b7458b3fcd7aa234fc.

[120] Bills from the 119th Congress that would require states to adopt automatic voter registration include H.R. 160 (Restoring Faith in Elections Act), H.R. 2847/S. 1887 (Vote At Home Act of 2025), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), and S. 2822 (Register America to Vote Act of 2025); another bill, H.R. 8441 (Military Voters Overseas Technical Enhancement [VOTE] Act), would direct the Secretary of Defense to conduct a feasibility study for creating automatic voter registration for members of the uniformed services. Bills from the 118th Congress that would have required states to adopt automatic voter registration include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act), H.R. 156 (Restoring Faith in Elections Act), H.R. 1439/S. 700 (Vote at Home Act of 2023), H.R. 9727/S. 5151 (Voter Empowerment Act of 2024), and S. 2841 (Register America to Vote Act of 2023). Similar bills that would have required states to adopt automatic voter registration in the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), H.R. 237/S. 136 (Vote at Home Act of 2021), H.R. 1308 (New Deal for New Americans Act of 2021), H.R. 2301 (Automatic Voter Registration Act), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), S. 2747 (Freedom to Vote Act), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 4335 (Register America to Vote Act of 2022).

[121] As examples from the 119th Congress, see H.R. 2847/S. 1887 (Vote At Home Act of 2025) and S. 2822 (Register America to Vote Act of 2025). For examples from the 118th Congress, see H.R. 1439/S. 700 (Vote at Home Act of 2023), S. 2841 (Register America to Vote Act of 2023). Examples from the 117th Congress include H.R. 237/S. 136 (Vote at Home Act of 2021), H.R. 2301 (Automatic Voter Registration Act), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 2747 (Freedom to Vote Act), and S. 4335 (Register America to Vote Act of 2022).

designated specifically to provide voter registration to newly eligible individuals.[122] Other proposals would require AVR when individuals conduct transactions with a variety of "contributing agencies," which typically would include DMVs, along with other state and federal agencies or other entities (i.e., institutes of higher education that receive federal funding).[123] Alternatively, proposals have been introduced that would prohibit states from providing AVR.[124]

Same-Day Voter Registration

For federal elections, NVRA specifies that state application deadlines cannot be more than 30 days before the election, but states may establish deadlines closer to Election Day and/or allow applicants to register at the time of an election through policies broadly known as *same-day voter registration*.[125] Currently, 21 states and the District of Columbia have same-day voter registration on Election Day, with many allowing same-day voter registration during early voting periods, if the state allows early voting.[126] Additionally, Alaska and Rhode Island allow for same-day voter registration for voting in presidential and vice-presidential elections. Massachusetts, New York, and North Carolina allow for same-day voter registration during early voting periods, but not on Election Day.[127]

Same-day voter registration is often presented by its proponents as a measure to make elections more accessible, because records can be created and updated at the time of voting; but this also raises considerations about verifying voters' information and maintaining efficient Election Day operations.[128] Proponents assert same-day voter registration simplifies the process for citizens and can increase registration rates and turnout.[129] Same-day voter registration may also help ensure that an individual who finds an error in his or her registration record, or forgot to update certain

[122] For example, H.R. 1643/S. 883 (New Deal for New Americans Act) in the 118th Congress would have required states to provide automatic voter registration for newly naturalized U.S. citizens based on information shared from DHS; similar provisions were introduced in the 117th Congress in H.R. 1308/S. 433 (New Deal for New Americans Act of 2021). Another proposal, in S. 2841 (Register America to Vote Act) from the 118th Congress would require states to operate a system to automatically register individuals to vote for federal elections at the time they turn 18 years old; similar provisions were included in S. 4335 (Register America to Vote Act) from the 117th Congress.

[123] Examples of these broader automatic voter registration provisions include H.R. 160 (Restoring Faith in Elections Act), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), and S. 2822 (Register America to Vote Act of 2025) from the 119th Congress, and H.R. 11/S. 1/S. 2344 (Freedom to Vote Act) and H.R. 156 (Restoring Faith in Elections Act) from the 118th Congress. Similar examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), and H.R. 2358/S. 954 (Voter Empowerment Act of 2021).

[124] From the 117th Congress, see H.R. 322/S. 459 (Save Democracy Act) and H.R. 5448 (Believe in Delaware Election Nobility [BIDEN] Act).

[125] For uniformed services and overseas voters, UOCAVA, as amended, requires states to accept and process any valid voter registration applications received not less than 30 days before an election; see U.S. Department of Justice, "The Uniformed and Overseas Citizens Absentee Voting Act," https://www.justice.gov/crt/uniformed-and-overseas-citizens-absentee-voting-act.

[126] National Conference of State Legislatures, "Same Day Voter Registration," March 27, 2026, https://www.ncsl.org/elections-and-campaigns/same-day-voter-registration.

[127] See National Conference of State Legislatures, "Same Day Voter Registration," March 27, 2026, https://www.ncsl.org/elections-and-campaigns/same-day-voter-registration. California, Colorado, Connecticut, Hawaii, Idaho, Illinois, Iowa, Maine, Maryland, Michigan, Minnesota, Montana, Nevada, New Hampshire, New Mexico, Utah, Vermont, Virginia, Washington, Wisconsin, and Wyoming allow same-day voter registration on Election Day.

[128] For an overview of literature on this topic, see "Same Day Registration" in U.S. Government Accountability Office, *Issues Related to Registering Voters and Administering Elections*, 16-630, June 2016, pp. 88-92, https://www.gao.gov/assets/680/678131.pdf.

[129] Stephen Knack and James White, "Election-Day Registration and Turnout Inequality," *Political Behavior*, vol. 22, no. 1 (March 2000), pp. 29-44; Raymond E. Wolfinger and Steven J. Rosenstone, *Who Votes?* (New Haven, CT: Yale University Press, 1980), pp. 37-80.

registration information,[130] can correct the record and still vote. Similarly, these policies may also help ensure continuity and ensure that eligible individuals will be able to vote if a broader VRDB issue is revealed during an election. In general, states have voter identification requirements to help verify the information provided by same-day registrants.[131] Others hold that preelection registration deadlines remain necessary for state election officials to sufficiently process individuals' applications.[132] Relatedly, a high volume of same-day voter registration could also create longer lines or require additional staff at polling stations. In some places with same-day registration, voters who register on Election Day cast provisional ballots until their information can be verified, but states vary on how these ballots are accepted and counted, which could create a delay in determining election results. Several legislative proposals introduced in recent Congresses would require states to permit individuals to register to vote on Election Day or on any other day that voting is permitted.[133] One proposal from the 119th Congress would prohibit states from allowing same-day voter registration.[134]

[130] Under NVRA (52 U.S.C. §20507(e)(2)(A)), individuals who move within the same jurisdiction and had not updated their voter registration address are still permitted to vote. States may determine where these voters can cast their ballots, but at least one of the following options must be provided: the voter's former polling place, current polling place, or a central location within the jurisdiction.

[131] Walter Shapiro, "Election Day Registration Could Cut Through Many of the Arguments in the Voting Wars," Brennan Center for Justice, October 16, 2018, https://www.brennancenter.org/our-work/analysis-opinion/election-day-registration-could-cut-through-many-arguments-voting-wars; National Conference of State Legislatures, "Same Day Voter Registration," accessed June 13, 2022, https://www.ncsl.org/research/elections-and-campaigns/same-day-registration.aspx.

[132] Ballotpedia, "Arguments For and Against Same-Day Voter Registration," https://ballotpedia.org/Arguments_for_and_against_same-day_voter_registration; and Rep. Alcee L. Hastings, "Introducing the Voter Outreach and Turnout Expansion Act of 2003," extension of remarks, *Congressional Record*, vol. 149, part 51 (February 1, 2005), p. E621.

[133] Examples from the 119th Congress that would require same-day voter registration include H.R. 8078/S. 4203 (Voter Empowerment Act of 2026) and H.R. 5906/S. 2820 (Same Day Registration Act of 2025). Examples from the 118th Congress that would require same-day voter registration include H.R. 11/S. 1/S. 2344 (Freedom to Vote Act), H.R. 239/S. 2843 (Same Day Registration Act), and H.R. 9727/S. 5151 (Voter Empowerment Act of 2024). Examples from the 117th Congress include H.R. 1/S. 1/S. 2093 (For the People Act of 2021), H.R. 65 (Same Day Registration Act of 2021), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 2747 (Freedom to Vote Act), and S. 4887 (Same Day Registration Act).

[134] See H.R. 7219 (Fair Apportionment and Independent Redistricting for Maps that Avoid Partisanship [FAIR MAP] Act).

List Maintenance Efforts

Voter registration list maintenance efforts start with existing records and attempt to ensure that eligible voters remain in the VRDB and ineligible voters (who may have moved, died, or are ineligible for other reasons under state law) are removed before the next election. This differs from verification efforts, which generally attempt to prevent inaccurate data from being added to the VRDB. Accurate lists are important for administrative purposes and for maintaining aspects of election integrity. With a count of the actual number of registered voters in a jurisdiction, election officials can better plan and distribute their resources, such as preparing an appropriate number of mailings and ballots. Accurate records are also necessary to identify certain instances of voter fraud, such as voter impersonation or double-voting. Supporters of robust list maintenance efforts note that accurate lists can help election officials better plan for elections and distribute resources appropriately. Some opponents of certain list maintenance practices note that removal of voters may not comport with federal or state law (and sometimes describe such practices as *voter purging*).[135] For further discussion, see CRS Report R46943, *Voter Registration Records and List Maintenance for Federal Elections*.

Legislative proposals related to voter registration list maintenance generally address how states receive updated voter information and/or what steps states should take before removing voters from their lists. NVRA provides that each state shall conduct a "general program that makes a reasonable effort" to remove ineligible voters, listing death and change in residence as reasons a voter may be removed.[136] Some proposals would add lack of proof of U.S. citizenship, or noncitizenship, to those listed reasons in NVRA.[137] NVRA presents the USPS NCOA database as an option states can use to identify voters who have moved, but it does not preclude states from using other methods to identify ineligible voters on their lists. Some bills introduced in recent Congresses would clarify what information about a voter must be shared among data sources in order to generate an accurate match and help ensure that the records belong to the same

[135] See, for example, Naila S. Awan, "When Names Disappear: State Roll-Maintenance Practices," *University of Memphis Law Review*, vol. 49, no. 4 (Summer 2019), pp. 1107-1144; Matt Vasilogambros, "The Messy Politics of Voter Purges," *Stateline*, October 25, 2019, https://www.pewtrusts.org/en/research-and-analysis/blogs/stateline/2019/10/25/the-messy-politics-of-voter-purges; and Ballotpedia, "Voter Caging and Purging," https://ballotpedia.org/Voter_caging_and_purging.

[136] 52 U.S.C. §20507(a)(4).

[137] See H.R. 22/S. 128 (Safeguard American Voter Eligibility [SAVE] Act) and H.R. 7296/S. 3752 (Safeguard American Voter Eligibility [SAVE America] Act) in the 119th Congress. The House passed a version of the SAVE America Act (218-213) as S. 1383 on February 11, 2026, and its provisions were also introduced in H.R. 8206 (Homeland Security and Further Additional Continuing Appropriations Act, 2026) and in H.R. 8800 (National Defense Authorization Act for Fiscal Year 2027). The House also passed H.R. 8800. The House also passed H.R. 22 (SAVE Act) (220-208) on April 10, 2025. Similar provisions from the 118th Congress were found in H.R. 3162 (Protecting American Voters Act); and H.R. 8281/S. 4292 (Safeguard American Voter Eligibility [SAVE] Act). Examples from the 118th Congress include H.R. 3162 (Protecting American Voters Act), H.R. 4460 (Noncitizens: Outlawed from Voting in Our Trusted Elections [NO VOTE for Non-Citizens] Act of 2023), H.R. 4494 (Ensuring Faith in Our Elections Act), H.R. 4563 (American Confidence in Elections [ACE] Act), and H.R. 8281/S. 4292 (Safeguard American Voter Eligibility Act [SAVE] Act). The SAVE Act from the 118th Congress passed the House (221-198), and its provisions were also introduced in H.R. 9494 (Continuing Appropriations and Other Matters Act, 2025) and H.R. 10034 (Border Security and Immigration Reform Act). Other examples from the 117th Congress include H.R. 2343 (Protecting American Voters Act) and H.R. 7959 (Noncitizens: Outlawed from Voting in Our Trusted Elections [NO VOTE for Non-Citizens] Act of 2022). Currently, NVRA provides that an individual may only be removed from a state's list of registered voters for federal elections upon request of that individual, if the individual has changed residences, or if the individual has died; NVRA also permits removal due to criminal conviction or mental incapacity, if provided under state law. One proposal from the 119th Congress would withhold a percentage of federal surface transportation funds from states that do not require proof of citizenship for voter registration; see H.R. 9897 (Trump-Reagan Election Enforcement Act).

individual.[138] Matches created using only voters' names and birthdays, for example, may falsely identify multiple, unique individuals as a single voter.[139]

States can also compare registration data with other states through partnerships or organizations like the Electronic Registration Information Center (ERIC) to identify individuals who may have registration records in multiple states.[140] Some legislative proposals from recent Congresses would provide criteria that a state must follow if it removes voter data based on information received from an "interstate cross-check." These criteria can address what information must be shared among state election officials to generate a reliable match of voter records or other procedural requirements for removing voters through these methods.[141]

Another issue related to voter list maintenance and removal processes involves political organizations or other groups that provide information to election officials about individuals whose registration status may have changed. Often, a group first sends a mailing to registered voters, and compiles information on which mailings are returned as undeliverable or which

[138] Examples from the 119th Congress include H.R. 8078/S. 4203 (Voter Empowerment Act of 2026). Examples from the 118th Congress related to criteria for matching voter records include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act) and H.R. 9727/S. 5151 (Voter Empowerment Act of 2024); examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 2747 (Freedom to Vote Act). In addition to voter caging documents, these bills also would prohibit states from using an "unverified match list" as the basis for preventing an individual from registering to vote or voting, or formally challenging an individual's registration status or eligibility. An "unverified match list" is defined as a list of individuals who are ineligible to vote in the jurisdiction that lacks a signature, photograph, or unique identifying number to ensure that the information matches voter registration records for the same individual. Several legislative proposals contain provisions that would require the Director of the National Institute of Standards and Technology (NIST) to establish matching standards for voter registration list maintenance purposes. Examples from the 119th Congress include H.R. 160 (Restoring Faith in Elections Act), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), and S. 2822 (Register America to Vote Act of 2025); and examples from the 118th Congress include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act), H.R. 156 (Restoring Faith in Elections Act), H.R. 9727/S. 5151 (Voter Empowerment Act of 2024, and S. 2841 (Register America to Vote Act of 2023); examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 4335 (Register America to Vote Act of 2022), and S. 2747 (Freedom to Vote Act).

[139] Michael P. McDonald and Justin Levitt, "Seeing Double Voting: An Extension of the Birthday Problem," *Election Law Journal*, vol. 7, no. 2 (Spring 2008), pp. 111-122; Sharad Goel et al., "One Person, One Vote: Estimating the Prevalence of Double Voting in U.S. Presidential Elections," *American Political Science Review*, vol. 114, no. 2, (May 2020), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=3872769; and Dartunorro Clark, "This System Catches Vote Fraud and the Wrath of Critics," *NBC News*, August 12, 2017, https://www.nbcnews.com/politics/white-house/system-catches-vote-fraud-wrath-critics-n790471.

[140] ERIC is a nonprofit organization "assisting states to improve the accuracy of America's voter rolls." Currently, 27 states and Washington, DC, are ERIC members; for more information, see https://ericstates.org/. In recent years, nine states have also chosen to stop participating in ERIC. For more information on these developments, see Acacia Coronado and Christina A. Cassidy, "Texas Is Largest State to Leave Bipartisan National Effort to Prevent Voter Fraud," Associated Press, July 20, 2023, https://apnews.com/article/texas-voting-registration-fraud-eric-324d63f035ec22785839bc1b632410b0; and Matt Vasilogambros, "Why Are GOP-Led States Leaving Voter Registration Group ERIC?," *Governing*, May 23, 2023, https://www.governing.com/politics/why-are-gop-led-states-leaving-voter-registration-group-eric. See also Dean Mirshahi and Patrick Larsen, "Spanberger Orders Virginia's Return to ERIC Voter Data Partnership," *Virginia Public Media*, March 26, 2026, https://www.vpm.org/news/2026-03-26/eric-election-integrity-security-abigail-spanberger-glenn-youngkin/.

[141] Examples from the 119th Congress include H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), which would amend NVRA to require that a state using an interstate cross-check to remove voters would need to receive an individual's (1) full name (including a middle name, if any), (2) date of birth, and (3) last four digits of a Social Security number; alternatively, a state could receive documentation from ERIC that a voter is a resident of another state. States would also have to complete these interstate cross-checks at least six months prior to a federal election. Similar examples from the 118th Congress include H.R. 9727/S. 5151 (Voter Empowerment Act of 2024), and examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021) and H.R. 2358/S. 954 (Voter Empowerment Act of 2021).

recipients did not respond to the mailings. The list is then submitted to election officials and can become the basis for challenging the registration status of those named on it.[142] Those who engage in this process may view it as a way to help election officials identify inactive or ineligible voters; opponents often refer to the process as *voter caging* and view it as an objectionable effort to reduce political participation. Some proposals in the 119th Congress would prohibit the removal of names from voter rolls based on "unverified voter challenge databases."[143] Some bills introduced in the 116th Congress contain provisions that would limit state officials' use of certain mailings or lists as the basis of a formal challenge to an individual's registration status, eligibility to vote, or removal from a voter list.[144] Other provisions would also require states to provide certain notifications to voters who are removed or public notifications when list maintenance efforts occur.[145]

Database Management and Access Standards

Under HAVA, each state with voter registration maintains a "centralized, interactive computerized statewide voter registration list" to serve as its official list of registered voters for federal elections.[146] HAVA specifies certain criteria for the records contained in a state VRDB (e.g., the name, registration information, and a unique identifier for every legally registered voter in the state) and provides that registration databases shall be coordinated with other state agency databases and must be available for access by any election official in the state. With regard to VRDB security, HAVA states that "[t]he appropriate State or local official shall provide adequate technological security measures to prevent unauthorized access to the computerized list established under this section."[147]

Some legislative proposals would provide further requirements related to VRDB security. Several bills introduced in recent Congresses would instruct the director of the National Institute of Standards and Technology (NIST) to develop privacy and security standards for voter registration

[142] See Ballotpedia, "Voter Caging and Purging," https://ballotpedia.org/Voter_caging_and_purging.

[143] For example, see S. 4774 (Fraudulent Artificial Intelligence Regulations [FAIR] Elections Act of 2026) and S. 5238 (For Our Republic Act). Another proposal would establish preclearance requirements for covered practices under the Voting Rights Act of 1965 that would include "[a]ny change to the maintenance of voter registration lists that adds a new basis for removal from the list of active registered voters or that incorporates new sources of information in determining a voter's eligibility to vote, wherein such a change would have a statistically significant disparate impact on the removal from voter rolls of members of racial groups or language minority groups that constitute greater than 5 percent of the voting-age population"; see H.R. 9222 (Drain the Swamp Act).

[144] Examples from the 119th Congress expressly mentioning voter caging lists include H.R. 8078/S. 4203 (Voter Empowerment Act of 2026). Similar examples from the 118th Congress include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act) and H.R. 9727/S. 5151 (Voter Empowerment Act of 2024); similar examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 2747 (Freedom to Vote Act). Some other bills include provisions that would prohibit state election officials from considering nonvoting, failure by the voter to respond to certain mailings (unless they are returned as undeliverable), or failure by the voter to take any other action as "objective and reliable evidence of ineligibility." As examples from the 119th Congress, see H.R. 5707/S. 2994 (Voter Purge Protection Act). For examples from the 118th Congress, see H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act) and H.R. 8677/S. 2842 (Save Voters Act); for examples from the 117th Congress, see H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 966 (Save Voters Act), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 2747 (Freedom to Vote Act).

[145] Examples from the 119th Congress include H.R. 5707/S. 2994 (Voter Purge Protection Act). Examples from the 118th Congress include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act) and H.R. 8677/S. 2842 (Save Voters Act); similar examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 966 (Save Voters Act), H.R. 5746 (Freedom to Vote: John R. Lewis Act), and S. 2747 (Freedom to Vote Act).

[146] 52 U.S.C. §21083(a)(1).

[147] 52 U.S.C. §21083(a)(3).

information and would require state election officials to develop VRDB access policies and security safeguards, as well as file annual statements certifying compliance with these standards.[148] Some bills introduced in the 116th Congress would have directed CISA, in consultation with NIST and the EAC's Technical Guidelines Development Committee (TGDC), to create "mandatory cybersecurity requirements" for federal election systems, including e-poll books and "any government database, website, or associated information system used by voters or government agencies for voter registration (including the management of voter registration status)."[149]

State policies vary on how voter registration lists may be accessed by members of the public, academic researchers, or political organizations.[150] State VRDBs may include an array of voter information, including date of birth, phone numbers, driver's license numbers, Social Security numbers, party affiliation, place of birth, race, gender, and whether or not they need assistance to vote. States that allow disclosure of voter registration information also vary on which data fields are released and which are redacted. In some instances, voter data may be used to distribute political information for candidates or parties, or it can be used for get-out-the-vote efforts. Outside groups may also examine voter data for irregularities or errors. While some might view disclosures for these purposes as appropriate, there are also general privacy concerns surrounding voter registration data and protecting this personal information contained in VRDB records.[151]

One bill in the 119th Congress would limit certain federal government activities related to the use of state voter registration records and limit the use of such records with federal databases or systems for federal election purposes.[152] Some bills introduced in recent Congresses would prohibit the use of voter registration information for commercial purposes.[153] Other legislative

[148] Examples from the 119th Congress include H.R. 160 (Restoring Faith in Elections Act), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), and S. 2822 (Register America to Vote Act of 2025). Examples from the 118th Congress include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act), H.R. 156 (Restoring Faith in Elections Act), H.R. 8078/S. 5151 (Voter Empowerment Act of 2024), and S. 2841 (Register America to Vote Act). Similar examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 2747 (Freedom to Vote Act), and S. 4335 (Register America to Vote Act of 2022).

[149] Examples from the 116th Congress include H.R. 2754/S. 1472 (Protecting American Votes and Elections Act of 2019) and S. 2238 (Securing America's Federal Elections [SAFE] Act).

[150] For an overview of state practices regarding obtaining voter registration lists, see National Conference of State Legislatures, "Access To and Use Of Voter Registration Lists," July 17, 2025, https://www.ncsl.org/elections-and-campaigns/access-to-and-use-of-voter-registration-lists; U.S. Election Assistance Commission, *Availability of State Voter File and Confidential Information*, October 29, 2020, https://www.eac.gov/sites/default/files/voters/Available_Voter_File_Information.pdf; and California Voter Foundation, *Voter Privacy in the Digital Age*, May 2004, https://www.calvoter.org/sites/default/files/voter_privacy_in_the_digital_age.pdf.

[151] See Aki Peritz, "Registered to vote? Your state may be posting personal information about you online," *Washington Post*, April 9, 2019, https://www.washingtonpost.com/outlook/2019/04/09/registered-vote-your-state-is-posting-personal-information-about-you-online/; Vivian Wang, "After Backlash, Personal Voter Information Is Removed by New York City," *New York Times*, April 30, 2019, https://www.nytimes.com/2019/04/30/nyregion/nyc-personal-voter-information-election-board.html; and Issie Lapowsky, "What Should (And Shouldn't) Worry You in That Voter Data Breach," *Wired*, June 20, 2017, https://www.wired.com/story/voter-data-breach-impact/.

[152] For example, see S. 4369 (Absentee and Mail Voter Protection Act), which, among other provisions, would prohibit federal funding for agencies from being used "(1) to create a national voter registration database or national citizenship database for Federal election purposes; (2) to use existing databases or systems to compile citizenship lists for Federal election purposes; or (3) to provide for the national collection of State voter registration or citizenship lists for Federal election purposes." The bill would also prohibit the Department of Justice from using federal funds to bring or continue civil actions against states to compel production of statewide voter registration lists.

[153] Examples from the 119th Congress include H.R. 160 (Restoring Faith in Elections Act), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), and S. 2822 (Register America to Vote Act of 2025). Examples from 118th Congress (continued...)

provisions introduced in recent Congresses would prohibit state election officials who receive voter registration records from contributing agencies from publicly disclosing "[a]ny information not necessary to voter registration," including any part of an individual's Social Security number or driver's license number.[154] Other proposals from recent Congresses would prohibit states from disclosing personally identifiable information from voter registration records of certain officials and their immediate family members.[155]

False Information Regarding Registration Status or Eligibility

Under federal law, it is a crime to intimidate, threaten, coerce, or attempt to intimidate, threaten, or coerce a voter in a federal election[156] or a person registering or attempting to register to vote.[157] The procurement or submission of voter registration applications that are known to be "materially false, fictitious, or fraudulent" under applicable state laws is also a federal crime.[158]

Some legislative proposals introduced in recent Congresses would amend the federal criminal code to include additional activities that could interfere with voter registration. For example, several bills include language that would make it illegal "for any person, whether acting under color of law or otherwise, to corruptly hinder, interfere with, or prevent another person from registering to vote or to corruptly hinder, interfere with, or prevent another person from aiding another person in registering to vote," and direct the EAC to develop and publish recommendations to help states deter violations.[159] Another proposal in the 119th Congress would establish criminal penalties for online platforms engaged in "knowingly disseminating, publishing, or broadcasting fraudulent civic misinformation," defined to include information about voter registration (among other activities), or conducting individualized targeting to do so.[160] Other legislation would prohibit any person acting under the color of law or otherwise from communicating or producing misinformation regarding a voter's registration status or eligibility

include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act), H.R. 156 (Restoring Faith in Elections Act), H.R. 9727/S. 5151 (Voter Empowerment Act of 2024), and S. 2841 (Register America to Vote Act of 2023). Similar examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 2747 (Freedom to Vote Act), and S. 4335 (Register America to Vote Act of 2022).

[154] Examples from the 119th Congress include H.R. 160 (Restoring Faith in Elections Act), H.R. 8078/S. 4203 (Voter Empowerment Act of 2026), and S. 2822 (Register America to Vote Act of 2025). Examples from the 118th Congress include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act), H.R. 156 (Restoring Faith in Elections Act), H.R. 9727/S. 5151 (Voter Empowerment Act of 2024), and S. 2841 (Register America to Vote Act of 2023). Similar examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 2747 (Freedom to Vote Act), and S. 4335 (Register America to Vote Act of 2022).

[155] For further discussion, see CRS Insight IN11831, *Election Worker Safety and Privacy*; and CRS Legal Sidebar LSB10781, *Overview of Federal Criminal Laws Prohibiting Threats and Harassment of Election Workers*.

[156] 18 U.S.C. §594.

[157] 52 U.S.C. §20511(1).

[158] 52 U.S.C. §20511(2)(A).

[159] Examples from the 119th Congress include H.R. 8078/S. 4203 (Voter Empowerment Act of 2026). Examples from the 118th Congress include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act), H.R. 1583 (Alice Paul Voter Protection Act), and H.R. 9727/S. 5151 (Voter Empowerment Act of 2024). Similar examples from the 117th Congress include H.R. 1/S. 1 /S. 2093 (For the People Act of 2021), H.R. 102 (Restoring Faith in Elections Act), H.R. 1245 (Alice Paul Voter Protection Act), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 2747 (Freedom to Vote Act), and S. 4335 (Register America to Vote Act of 2022).

[160] See H.R. 10300 (Big Tech Accountability Act).

during a specified time preceding an election.[161] These provisions would cover information regarding a voter's registration status or eligibility that is known to be materially false or with the intent to prevent an individual from participating in an election.

Concluding Observations

Congress has enacted certain federal voter registration requirements that apply to states, such as NVRA's directive to provide simultaneous federal voter registration opportunities alongside state DMV transactions or HAVA's provision for a centralized, statewide database of voter registration records. Through these requirements, Congress has, arguably, created a larger federal role in voter registration policy than exists in some other areas of election administration. States, however, continue to retain the authority to set a number of their own voter registration policies and requirements, both for federal and state or local elections, and state voter registration practices vary along several dimensions.

Voter registration has been of continuing interest to Congress for a variety of reasons. Because voter registration is a prerequisite for voting in each state but North Dakota, many view congressional involvement in this area as an extension of the federal government's role in upholding the constitutional right to vote and preserving fair elections. From one perspective, certain voter registration practices might be viewed as security measures that prevent ineligible individuals from voting or prevent eligible voters from voting more than once. From another perspective, certain voter registration practices might be viewed as impediments that can prevent eligible voters from exercising their right to vote.

Concerns also exist over the general security of voter registration databases and related election systems, both in terms of personal data protection and election integrity. These considerations are particularly relevant in the current congressional environment, as voter registration databases have been targets for interference ahead of recent elections. Technological advancements can make it easier for election officials to keep up-to-date voter records, but this increased reliance on computerized systems has also introduced ongoing data-security challenges.

Dozens of bills related to voter registration have been introduced in both the 119th and 118th Congresses, with some proposals reflecting long-standing areas of legislative interest, such as expanding registration opportunities, and some reflecting more recent concerns surrounding election cybersecurity or verifying the citizenship of prospective voters. Many congressional proposals regarding voter registration tend to mirror initiatives already in place across certain states, which may provide insights on potential broader federal implementation.

[161] For example, certain bills in the 119th Congress would prohibit this activity within 60 days preceding an election, including H.R. 8078/S. 4203 (Voter Empowerment Act of 2026) and H.R. 4894/S. 2912 (Deceptive Practices and Voter Intimidation Prevention Act of 2025). Similar provisions from the 118th Congress include H.R. 11/S. 1 /S. 2344 (Freedom to Vote Act) and H.R. 9727/S. 5151 (Voter Empowerment Act of 2024). Similar provisions from the 117th Congress include H.R. 1/S. 1/S. 2093 (For the People Act of 2021), H.R. 2358/S. 954 (Voter Empowerment Act of 2021), H.R. 5746 (Freedom to Vote: John R. Lewis Act), S. 2747 (Freedom to Vote Act), and S. 1840 (Deceptive Practices and Voter Intimidation Prevention Act of 2021).

Although some policymakers have expressed interest in an expanded federal role in voter registration, other policymakers question whether further congressional action is necessary. Some policymakers view existing federal and state practices as sufficient, while some note there may be other considerations to weigh against the perceived benefits of any federal voter registration policy changes. Imposing uniform standards across states, for example, can present a challenge, considering the variety of election practices currently in place under state laws. Having an array of voter registration systems across states may also limit the scope of any potential problems to a few states or localities, rather than affecting all jurisdictions nationwide. Policymakers may also choose to prioritize other election administration or election integrity measures that are unrelated to voter registration.

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Acknowledgments

Figures in this report were created by Amber Hope Wilhelm, CRS Visual Information Specialist.

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